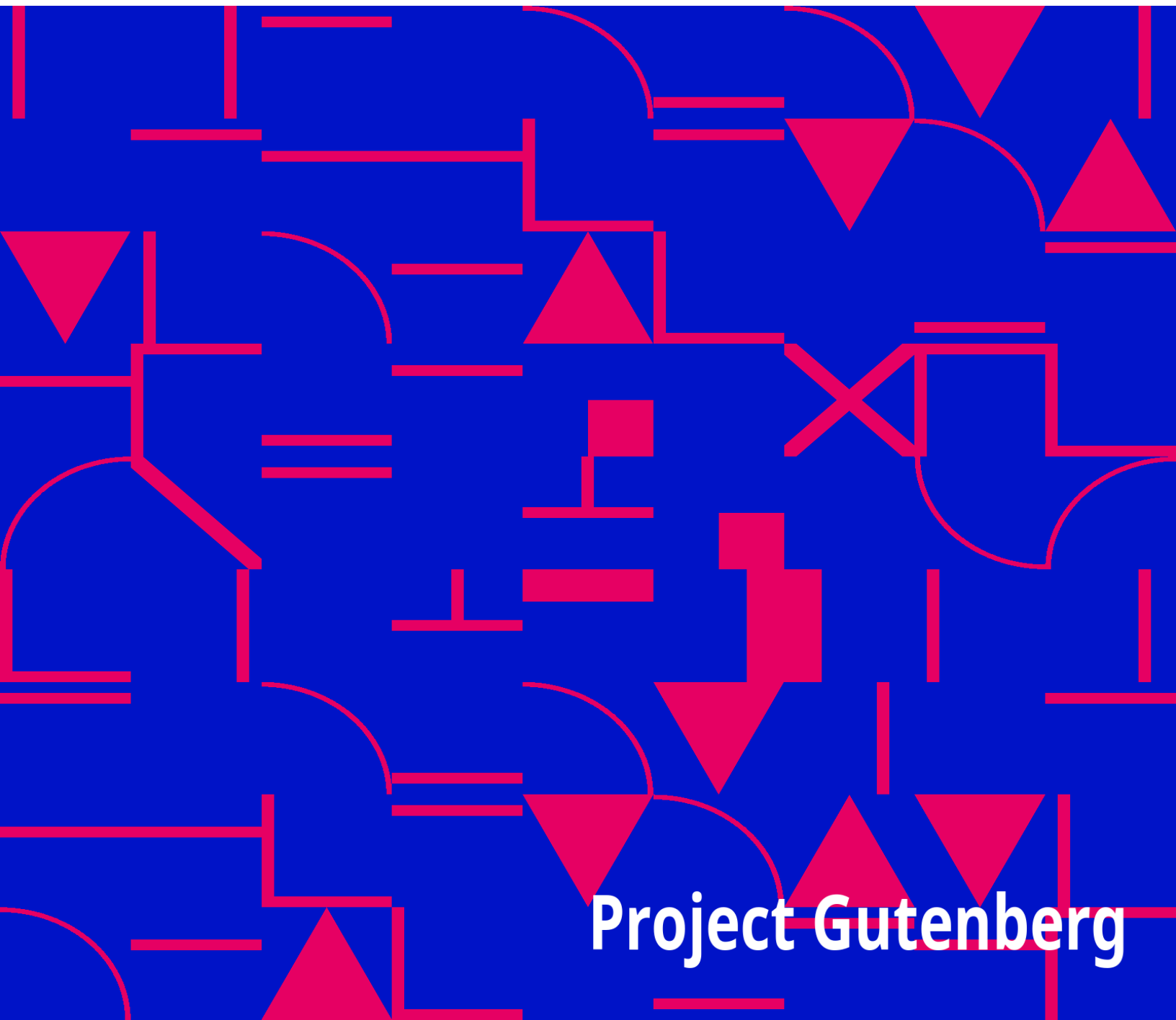


The Irish Ecclesiastical Record, Volume 1, July 1865



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July 1865**

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The Irish Ecclesiastical Record

Volume 1

July 1865

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[pg 449]

Judge Keogh And Catholic Doctrines.

We have read the address of Mr. Justice Keogh¹ with feelings of surprise and sorrow. It is un-Catholic in its language, it is un-Catholic in its spirit, it is un-Catholic in its principles. If it had come from a member of a hostile sect, we could well afford to let it pass unnoticed; to let it live its short life, and die a natural death. But when the calumnies, the sneers, the sarcasms of our enemies are turned against us by one who is enrolled under the banner of Catholic faith, we can no longer remain silent in safety. The weapons which are powerless in the hands of a declared enemy, are dangerous indeed when they are wielded by a traitor in the camp.

Mr. Justice Keogh is no ordinary man. His mind is adorned with talents well fitted to amuse, to delight, to instruct an audience. In his short but brilliant career as an orator and a statesman, he won for himself a great name at the bar and in the senate. And now he is lifted up above his fellows, and placed in a position of high trust and extensive influence. When such a man comes forward, with forethought and preparation, as one of the instructors of the age, he is a conspicuous object of interest and attraction. He is looked upon, by those who are not acquainted with his antecedents, as the exponent of Catholic views, the representative of Catholic intelligence and education. We are therefore compelled, in self-defence, to declare that the opinions he has expressed are not the opinions of the Catholic Church, and the language he has thought fit to use cannot be regarded, by the Catholic people of Ireland, but as offensive and insulting.

His lecture contains little originality of thought or novelty of [pg 450] argument. It does but reflect the spirit of the age in which we live. The opinions and the views which it sets forth have long been familiar to our ears: they pervade the shallow current literature of England, of Germany, of Italy, of France. Intellectual freedom, unbounded, unrestrained; freedom of thought in the search after truth, without any regard to authority; freedom of speech in the circulation of every view and opinion; freedom to pull down old theories, freedom to build up new theories; freedom to roam at large without any guide over the vast fields of speculation, adopting that which

private judgment commends, rejecting that which human reason disapproves; these are the popular dogmas of the present day; and these are the topics which Mr. Justice Keogh proposes to illustrate and to enforce by the life and writings of our great English poet.

Now, we are not the enemies of freedom. The Catholic Church is not the enemy of freedom. But we should expect that one who comes forward to enlighten the world on this important subject, would tell us *how far* human reason is to be left without restraint in the search after truth. It is easy to talk of intolerance, persecution, narrow-minded bigotry; but these words have no meaning unless we first clearly understand what that freedom is—in thought, in word, in action—which is the natural right of all men; which it is intolerance to deny, which it is tyranny to extinguish. First of all, if the fact of a Divine Revelation be once admitted, it is clear that human reason is not exempt from *all restraint*: it must be controlled at least by the Word of God. We are surely bound to believe what God has taught: and when reason would lead us to conclusions contrary to His teaching, as may sometimes happen, we are bound to check our reason and to abandon those conclusions. For, reason *may* be deceived, but God can *not*. This is what we understand by the words of St. Paul when he speaks of “bringing into captivity every understanding unto the obedience of Christ”—II. *Cor.*, x. 5.

With this preliminary remark we shall now submit to our readers the opinions of Mr. Justice Keogh:—

“Could words of mine prevail to induce you to devote a small portion of your leisure hours, stolen though it be from the pleasure paths of sensational or periodical literature, to those great productions of John Milton, in which the staunchest friend of freedom and of truth that ever lived has made the most successful war against tyranny and falsehood—in which he has proclaimed in tones not unworthy of the Apostle of the Gentiles,² that education really free [pg 451] is the only source of political and individual liberty, the only true safeguard of states and bulwark of their renown—in which he has for ever ‘justified the ways of God to man’, by asserting the right of all men to exercise unrestrained their intellectual faculties upon all the gifts of God—to determine for themselves what is truth and what is falsehood—to circulate their thoughts from one to another, from land to land, from tribe to tribe,

from nation to nation, free as ‘the winds that from four quarters blow’—to raise their thoughts and to pour forth their words above the level of vulgar superstition, unrestricted by any illiberal or illiterate licenser—then you will find that he has risen, as mortal man never did before, to the height of greatest argument, and proclaimed in language which is affecting the fate of millions, even at this hour, on the banks of the Mississippi, and in the remote forests of the far west, that He who has made ‘of one blood all nations of men to dwell on all the face of the earth, willeth not that men shall any longer hold in bondage as a property the bodies or the souls of men, but that all alike shall have, unobstructed by any ordinance, a free book, a free press, a free conscience’. If any words of mine shall tempt you to approach these considerations, to ponder upon them as they are to be found in the tractates of Milton, in a tranquil, in a large and comprehensive spirit, and when you have done so, to make their fit application not only at home but abroad, not only abroad but at home, then we shall not have met in vain in this assembly”.

We do not propose to offer any remarks on the subject of political liberty. But the principles here enunciated are of universal application. Milton waged the “successful war” of freedom not less in matters of religion than in matters of state. And Mr. Justice Keogh adopts his principles without any limitation. He asserts with Milton “the right of all men to exercise *unrestrained their intellectual faculties upon all the gifts of God*—to determine for themselves what is truth and what is falsehood”. If we take these words literally as they stand, they are inconsistent not with the Catholic religion only, but with every system of Christianity that has ever existed. Luther, the great champion of intellectual freedom, though he shook off the yoke of church authority, set up in its stead the authority of the Bible. Even he was willing to admit that the wanderings of the human mind should be restricted by the teaching of the Word of God. It is clearly contrary to the common principles of Christianity to assert that in metaphysics, in ethics, in psychology, in any human science, the mind is at liberty to embrace opinions incompatible with the truths which God has revealed. And if it be not at liberty to do so, then it is not “unrestrained”.

It may be said, however, that the author of this address does not really intend to assert what his words seem to convey. How then are we to guess at his meaning? He insists upon [pg 452] “the right of all men to exercise

unrestrained their intellectual faculties” in the pursuit of truth. If he does not mean this, what *does* he mean? If he does not wish to exclude *all restraint* on the “intellectual faculties” of men, what restraint is he willing to admit? Upon this point there seem to be just two opinions between which he has to choose: the one is the common doctrine of all Catholics; the other is the fundamental principle of the Protestant Church. Let us pause for a moment to examine these two systems.

According to Catholic faith, our Divine Lord has established in His Church an infallible tribunal, to pronounce, in matters of religion, what is true and what is false. Hence, it is never lawful, whether there be question of religious belief or of human science, to adopt opinions at variance with the teaching of this infallible tribunal. Here indeed is a check upon intellectual freedom, but a check which must, of necessity, be admitted by all who belong to the Catholic Church. And surely it is no great sacrifice to submit our finite understanding, so frail and erring, to the authority of God's Word, explained by a tribunal which He has Himself established, and to which He has promised His never-failing help.

Protestants, on the other hand, maintain the right of each one to interpret for himself, according to the best of his private judgment, the Revelation which God has given to man. The liberty of the human mind is therefore unfettered by any human authority. In this all sects are agreed. Some, indeed, believe that the Church has authority to teach, and some reject this opinion; but all maintain that there is no obligation in conscience to accept her teaching. She has not the gift of infallibility. Just as individuals may fall into error, so too may the Church herself fall into error. Her teaching may be true, or it may be false; each one is to judge for himself. The only check upon the freedom of thought is the Divine Message sent to us from on High, and recorded in the pages of Holy Writ.

We maintain, of course, that the Catholic system which we have just explained is true, and the Protestant system false. If we were engaged in controversy with a Protestant, it would be our duty at once to establish and to defend our doctrine; to demonstrate that the Church of Christ is infallible, and that the right of private judgment is contrary alike to the teaching of Scripture and to the dictates of common sense. But in the case before us,

there is no call for proof: Mr. Justice Keogh is a Catholic. It remains then only to examine if the language of his address is not calculated to convey an opinion quite inconsistent with the faith which he professes.

The question we wish to raise is simply this: “Does the address [pg 453] before us admit that the human mind in the pursuit of truth should be restrained by the authoritative definitions of the Catholic Church, or does it rather exclude this restraint?” Now, in the first place, it is to be remembered that this restriction of intellectual freedom is denied by all Protestants in this country, and maintained by all Catholics. When a lecturer, then, addressing a mixed audience, in a written discourse, tells them that “all men have a right to exercise their intellectual faculties *unrestrained*”, do not the circumstances of the case fix upon his words a Protestant signification? Will not his hearers naturally say that he has chosen the Protestant side of the controversy, and not the Catholic? Again, according to the Protestant doctrine, each one is at liberty to construct a system of religious belief for himself: according to the Catholic doctrine, every one should accept the tenets of his faith on the authority of the Church. Now we are told in the address, that all men have “*a right to determine for themselves* what is truth and what is falsehood”. Has this phraseology a Catholic or a Protestant complexion? Lastly, the lecturer exhorts his hearers to go themselves to the pages of Milton, there to learn the doctrine of intellectual freedom. It will, therefore, naturally be supposed, that the doctrine is defended by the lecturer in the same sense in which it is defended by the poet. Now Milton denied again and again, not in his writings only, but also by his acts, that the Church has any right to interfere with the speculations of the human mind. It is evident, therefore, that the language of Mr. Justice Keogh, whether considered in itself, or understood by the light of the context, is incompatible with the principles of the Catholic Religion.

Freedom of thought is not enough: freedom of speech is also an essential dogma of the new philosophy. We are assured that all men have a right “to circulate their thoughts from one to another, from land to land, from tribe to tribe, from nation to nation, free as ‘the winds that from four quarters blow’; to raise their thoughts, and to pour forth their words above the level of vulgar superstition, unrestricted by any illiberal or illiterate licenser”. Accordingly, amongst the various prose works of Milton, there is one which

our lecturer selects for especial commendation. It is entitled: *Areopagitica, a Speech for the Liberty of Unlicensed Printing*. This little tract is distinguished, no doubt, for its learning, wit, and eloquence; but these high qualities are devoted to the defence of opinions which we cannot accept. The book and its principles are thus introduced to his audience by Mr. Justice Keogh:

“If all the works he produced were cancelled and forgotten ... yet give one in hand, the treatise for the liberty of unlicensed printing, [pg 454]the *Areopagitica*, and I would boldly maintain, not only that he had satisfied every call which his country could make on the most devoted of her sons, but that he had vindicated their rights and sustained his own reputation in the greatest pen writing in the English language. He wished, as he tells us in this treatise, to deliver the press from the restraints with which it was incumbered, that the power of determining what ought to be published and what suppressed, might no longer be entrusted to captious lawyers or knavish priests, or even grave chancellors and venerable chief justices.... I shall give you, even at the risk of trying your patience, some extracts from this treatise; but first let me tell you, that it establishes in the clearest way, not only that Milton was the fast friend of toleration, but that the charges of being an enemy of all order and of all monarchy, so industriously made against him, are without foundation.... And then he gives expression to this noble sentiment, fit to be engraven in letters of gold. Let statesmen hear it, and tyrants, civil and ecclesiastical, dwell upon it: ‘Although I dispraise not the defence of just immunities, yet love my peace better, if that were all, give me the liberty to know, to utter, and to argue freely, according to conscience, above all liberties’. I cannot bring myself to hurry over this noble tract. I have read it over again and again; I read it years and years ago, and often since, and now again, for the purpose of addressing you; and the oftener I read it, the more I take it to my heart. If such be its effect upon me, as I fondly hope it may be upon many of you”, etc.

Notwithstanding this ardent and enthusiastic declaration, we yet think it would be unfair to impute to the learned lecturer every casual expression or even every deliberate opinion set forth in the speech he so much admires. It is, however, clear that he adopts as his own at least the main features of the

doctrine enunciated, and the general character of the argument by which it is defended. This doctrine may be explained in two words: unbounded liberty, on the one hand, to publish and to circulate all manner of opinions; unbounded liberty, on the other, to read all manner of books. The State, it is contended, has no right to forbid, or to repress, those publications which are dangerous to the welfare of society; neither has the Church a right to forbid or to repress those publications which are hostile to the spiritual interests of the faithful. These views we believe to be false and pernicious both as regards the power of the State and the power of the Church. It is, however, under the latter aspect alone that we propose to consider the subject.

The pastors of the Church have received a divine command to guard the integrity of faith and to watch over the purity of morals. Therefore have they also received from God that authority which is necessary for the due fulfilment of this high charge. And such is the authority to prohibit and, as far as [pg 455] may be, to repress those publications of which the only tendency is to introduce error and to disseminate vice. For it is impossible to preserve truth incorrupt in a community, if error may be circulated without restriction, dressed up in the delusive garb of sophistry; it is impossible to preserve morals pure, if vice may be freely exhibited in the most seductive and alluring forms. A great writer and a wise philosopher, Samuel Johnson, even though a Protestant, had the vigour of mind to seize this important principle, which he has expressed with a singular felicity of diction and an epigrammatic power peculiarly his own: “If every murmurer at government”, he says, “may diffuse discontent, there can be no peace; and if every sceptic in theology may teach his follies, there can be no religion”.³

We confess indeed that this is a question full of difficulty to members of the Protestant Church. They believe that each one has a right to judge for himself what is true and what is false: and it is not easy to see how this right can be exercised, unless each one be free to examine every form of belief, every variety of error. But we are at a loss to understand how a Catholic should go astray on a subject so plain. From the earliest ages the Catholic Church has ever claimed and exercised the right to condemn and prohibit those books which are contrary to faith and dangerous to morals. Now it

would be an error in doctrine to suppose that the Catholic Church could claim such a right if she had not received it from her Divine Founder.

If we pass from the doctrine of Milton to his arguments, we shall have much greater reason to wonder how it should have come to pass that we are asked, by a Catholic lecturer, to accept his views. He does not defend the circulation of bad books as a necessary evil, which it is inexpedient or impossible to check. On the contrary, he maintains it is a positive good, which ought to be encouraged. According to his notion, the promiscuous reading of bad books is the furnace in which our love for truth and virtue is to be tried. There can be no merit in truth, he argues, for him who is not acquainted with error; there can be no merit in virtue for him who is not familiar with vice. These are sentiments so utterly repugnant to the common instincts of our nature, that we could not believe they came from our illustrious poet, if his own words did not bear witness against him:—

“As, therefore, the state of man now is, what wisdom can there be to choose, what continence to forbear, without the knowledge of evil? He that can apprehend and consider vice with all her baits and seeming pleasures, and yet abstain, and yet distinguish, and yet prefer that which is truly better, he is the true wayfaring Christian. I cannot praise a fugitive and cloistered virtue, unexercised and unbreathed, [pg 456]that never sallies out and seeks her adversary, but slinks out of the race, where that immortal garland is to be run for notwithstanding dust and heat. Assuredly we bring not innocence into the world; we bring impurity much rather: that which purifies us is trial, and trial is by what is contrary. That virtue, therefore, which is but a youngling in the contemplation of evil, and knows not the utmost that vice promises to her followers, and rejects it, is but a blank virtue, not a pure.... Since therefore the knowledge and survey of vice is in this world so necessary to the constituting of human virtue, and the scanning of error to the confirmation of truth, how can we more safely and with less danger scout into the regions of sin and falsity, than by reading all manner of tractates, and hearing all manner of reason? And this is the benefit which may be had of books promiscuously read”.⁴

We shall offer no commentary on this passage. Principles like these carry with them their own condemnation. And yet such are the principles advanced in a tract, which has made so favourable an impression on Mr. Justice Keogh, that the *oftener he reads it, the more he takes it to his heart*, and which he *fondly hopes* may make a like impression on the minds of his audience.

When we are assured by Mr. Justice Keogh that Milton was “the fast friend of toleration”, we can scarcely believe that he is serious. Lest, however, our readers should be led astray, we shall briefly tell them what Milton *really thought and said* on the subject of religious toleration. Towards the close of his life, he wrote a very important treatise⁵ in which he discusses the question, and explains his views with his usual clearness and force. He maintains in this treatise that all religious sects are to be tolerated, with *one exception*; and that exception is the *Roman Catholic Church*. Lutherans, Calvinists, Anabaptists, Socinians, Arminians, in a word, *all Protestants*, whatever their religious opinions may be, should have liberty to preach, to discuss, to worship, unmolested: but Catholics must not be tolerated; they must not be permitted to defend their doctrines; they must not be permitted to worship either in public or in private.⁶ This, he contends, is one of the *best means to prevent the growth of Popery*.⁷ Here is the champion of intellectual liberty that Mr. [pg 457] Justice Keogh would hold up to the admiration of his audience! Here is “the fast friend of toleration”, “the staunchest friend of freedom and truth that ever lived”, the man who “has made the most successful war against tyranny and falsehood”! We must charitably suppose that the learned lecturer has formed his opinion of Milton without reading his works.

We are told by the biographers of Milton that his father, who was the son of a zealous Roman Catholic, abandoned the religion of his ancestors, and was on that account deprived of his inheritance. The act of apostasy is one that the Catholic Church can never contemplate without the deepest sorrow and abhorrence. According to the principles of our faith, he who separates himself from the one True Church transgresses the command of God and forfeits his claim to everlasting happiness. Yet, it would seem, Mr. Justice Keogh finds in this act nothing to deplore, but much to admire. Speaking of the poet, he says:—

“He was in early youth instructed by a father who had sacrificed for conscience' sake a fair inheritance, with all scriptural lore, of which he drank with a thirst which was never satisfied”.

If we understand these words aright, our author regards with complacency the conduct of one who renounced the true faith, to embrace a religion which, in the eyes of all Catholics, is false and heretical. To his mind the act of apostasy is *a sacrifice for conscience' sake*. This is liberality of sentiment indeed! But it is a liberality of sentiment which we cannot reconcile with the maxims of sacred Scripture. Not so did the great apostle speak of those who had “made shipwreck concerning the faith”. “Of whom”, he said, “is Hymenaeus and Alexander, whom I have delivered up to Satan, that they may learn not to blaspheme”—I. *Tim.*, i. 19. 20. And again: “And their speech spreadeth like a canker; of whom is Hymenaeus and Philetus, who have erred from the truth, saying that the resurrection is past already”—II. *Tim.*, ii. 17, 18.

Our readers, perhaps, will not be unwilling to know what was the effect of this training on the religious principles of Milton. His rich and vigorous mind was, indeed, a fertile soil. The seed which was sown in the spring time of youth, did not fail to grow up into a luxuriant tree, and to bring forth fruit in due season, according to its kind. In the maturity of life he constructed a system of theology which he professed to derive from Scripture alone. It is recorded by his own pen in his treatise *De Doctrina Christiana*, which, having been lost for a hundred and fifty years, has come to light within the present century. The peculiar tenets which he sets forth in this remarkable book may be briefly told. He defends the lawfulness of polygamy and divorce; he [pg 458] maintains that matter exists from eternity; he denies the doctrine of the Trinity; the Son is inferior to the Father, and produced in time; the Holy Ghost is inferior to the Father and the Son. An able writer has described “the result of the whole work” as “a system of theology not merely in discordance with the Church of England, but with every sect by which we are divided; an incoherent and conflicting theory, which combines Arianism, Anabaptism, Latitudinarianism, Quakerism, and we know not what to add, on account of his opinions on polygamy, but Mahometanism”.⁸ These results are the ripe fruit of that early instruction in

“all Scriptural lore” which Milton received, and for which Mr. Justice Keogh would seek our sympathy and approval.

After what we have seen, we cannot be surprised that our learned lecturer should point the finger of scorn and ridicule at the Roman Inquisition. Speaking of Milton's travels in Italy, he says: “There it was his fortune to visit Gallileo, confined in the prison of the Inquisition for thinking in astronomy otherwise than the Franciscan and Dominican believers”. We do not propose here to defend the Inquisition: neither shall we attempt to disprove the charge, which Mr. Justice Keogh would fain convey, that the Catholic Church is the enemy of scientific truth. We shall wait for an adversary who deals in arguments and not in sneers. We cannot, however, forbear to notice a gross inaccuracy in the statement of fact. It is asserted that it was the fortune of Milton “to visit Gallileo *confined in the prison of the Inquisition*”. This assertion is simply false. Milton's visit must have occurred about the year 1638, and it is well known to all who are acquainted with the subject, that Gallileo was then living at home in his own house at Arcetri, quietly pursuing his astronomical studies. In point of law, indeed, he was still technically a prisoner of the Inquisition, but this is widely different from being *confined in the prison of the Inquisition*. It is only fair to observe that the words of Milton himself, from whom the lecturer has taken his statement, are, on this point, strictly correct. “There it was that I found and visited the famous Gallileo, grown old, *a prisoner to the Inquisition*, for thinking in astronomy otherwise than the Franciscan and Dominican licensers thought”.⁹ Our lecturer, therefore, in borrowing the language of the poet, has not only contrived to introduce an error, but he has taken care that this error shall be on the side most unfavourable to the Catholic Church.

We shall not trouble the reader with our own views or arguments on the hackneyed controversy of Gallileo's persecution. We shall be content to contrast the opinion of Mr. Justice Keogh with that of a learned and able Protestant writer, who has devoted [pg 459] much study to the life and times of the great astronomer, and who is himself honourably distinguished in kindred fields of science. Sir David Brewster, with all his strong anti-Catholic prejudices, distinctly maintains that the trials of Gallileo, such as they were, are not to be ascribed to his opinions in matters of astronomy,

but rather to his “personal imprudence” and to his “irreligious sentiments”.¹⁰ The character of the persecution which he had to endure at the hands of the Catholic Church may be gathered from the testimony of the same eminent writer. In the year 1623, long after he had been tried before the tribunal of the Inquisition, having occasion to come to Rome, he met with a noble and generous reception from the Father of the faithful. “The kindness of his Holiness”, says Sir David Brewster, “was of the most marked description. He not only loaded Gallileo with presents, and promised him a pension for his son Vincenzo, but wrote a letter to Ferdinand II., who had just succeeded Cosmo as Grand Duke of Tuscany, recommending Gallileo to his particular patronage”.¹¹ And again he says:

“Thus honoured by the head of the Church, and befriended by its dignitaries, Gallileo must have felt himself secure against the indignities of its lesser functionaries.... But Gallileo was bound to the Romish hierarchy by even stronger ties. His son and himself were pensioners of the Church; and having accepted of its alms, they owed it at least a decent and respectful allegiance. The pension thus given by Urban was not a remuneration which sovereigns sometimes award to the services of their subjects. Gallileo was a foreigner at Rome. The sovereign of the Papal state owed him no obligation; and hence we must regard the pension of Gallileo as *a donation from the Roman Pontiff to science itself*, and as a declaration to the Christian world that *religion was not jealous of philosophy*, and that the Church of Rome was willing to *respect and foster even the genius of its enemies*”.¹²

There are many other blots in the address of Mr. Justice Keogh, which a severe critic would not pass by without censure. He would ask, perhaps, how comes it that the lecturer takes his Scriptural quotations from the Protestant and not from the Catholic Bible? Is it that the Protestant Bible is the only one with which he is familiar? Can it be that the Protestant Bible is the source from which he derives his views in philosophy and in theology? We fully recognize the literary merits of the English Authorized Version; but there can be no doubt that the religious prejudices of its authors have led them into many serious errors. At all events it is not usual for a Catholic to quote from its pages [pg 460] without some apology or some explanation. Again, why does he tell his audience that the names of Spenser,

of Shakespeare, of Scott, are to be found on the *Index Expurgatorius*? Did he consult the *Index* himself and find these names upon it? It cannot be: they are not there. Was he induced to make the assertion on the authority of some trustworthy witness? We can scarcely believe it was so: no writer who cares for his reputation would commit himself to a statement so easily disproved. Was it, then, that he wished to cast unfounded aspersions on the Catholic Church, and to bring her institutions into discredit with all who cherish the names of those illustrious writers? Once more: Mr. Justice Keogh, forgetting, for the moment, his country as well as his religion, introduces to the favourable notice of his audience “our glorious deliverer, William III.”! What a startling phrase to hear from the lips of an Irishman and a Catholic! William III. possessed many eminent qualities: he was a brave soldier and an able statesmen. But in the annals of Ireland his name must be for ever associated with persecution and with perfidy.^{[13](#)}

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Our limited space is now drawing to a close; and, in good truth, we are weary of passing censure. It is time that we lift up our eyes from the right honourable lecturer to fix them for a few moments on the more noble and majestic proportions of the great poet himself. When we contemplate that venerable figure, as it stands forth to view on the canvas of history, if we speak in the language of censure, it must be blended with the language of genuine love and veneration. His errors we cannot defend; his faults we do not wish to extenuate; we are obliged to protest against his principles, and those who eulogise them. But amidst the varied fortunes of his chequered career he displayed many great qualities, which cannot fail to win the admiration of every generous heart.

Of his public conduct as a statesman we cannot indeed speak with approval. It seems to us that all the arguments advanced in his defence carry with them also his condemnation. He sided with the parliament against the king, because, it is said, he wished to uphold the constitution of his country; and yet he defended the trial and execution of the king, which were conducted in defiance of that same constitution. He abandoned his lawful sovereign to support the fortunes of Cromwell, because he believed that Charles was a despot; and yet he clung to the cause of Cromwell when Cromwell was not only a despot but an usurper. If the constitution was to be upheld, then the

execution of the king was indefensible. If a tyrant should forfeit the allegiance of his subjects, then Cromwell had no claim to be obeyed. Yet however much he erred, it must be ever borne in mind that those who took a part in the turbulent events of the great rebellion, had not the same opportunities to form a calm and impartial judgment which we now possess. Men distinguished by great vigour of mind and great public spirit, were to be found on opposite sides in the senate and in the camp. None could have told, when the breach first appeared between Charles and his parliament, that it would lead to civil war and end in the crime of regicide. It was necessary to make a choice; and the choice once made, it required more than ordinary virtue, more than ordinary courage, to recede; virtue and courage with which Milton was not endowed.

Those, however, who would form a just estimate of Milton's character must seek him far away from the din of war and the strife of parties. He had borne a conspicuous part in a memorable political struggle; his fame had been carried abroad to distant lands; and yet he retires without regret from public life, to commune with his own mind in the obscurity of an humble lodging. The world admires the magnanimity of the old Roman who, having saved his country from destruction, returned again [pg 462] to his plough and to the simple pleasures of his rustic home. But there is far more to admire in the closing period of Milton's career. The hour of his prosperity had passed away; the vigour of youth was gone. Disappointed in his hopes, neglected by an age unworthy of his genius, poor, and blind, and old, his splendid mind rose superior to all these calamities, which would have crushed a less noble spirit. As if now, at length, released from the captivity of earthly bonds, he soars aloft to higher thoughts, and pours forth from an overflowing soul the lofty strains of his unrivalled poem, the glory of English literature, the wonder and delight of every succeeding age. Not often does the history of the world present to us a spectacle so sublime.

Yet how little does genius avail in the one great and important affair of religion, unless guided and controlled by that infallible authority which God has established in His Church! The great doctrinal errors of Milton cannot be imputed to any want of intellectual power; for, in the natural gifts of intellect, he was eminently conspicuous. Much rather must they be ascribed to the erroneous system he employed in the search of Revealed truth.

Starting from false principles, the more boldly he advanced, the more deeply did he plunge into error. In common with other Protestants, he accepted the doctrine of private judgment; but he was distinguished from others by the logical consistency and inflexible resolution with which he ever clung to this fundamental principle. Having been taught not to subject his reason to the authority of a Church which claimed to be infallible, he refused to submit to the teaching of a Church which had renounced that claim. His errors were more extravagant than those of other Protestant writers, only because he was more fearless in his speculations, more consistent in his principles, more honest in his speech. Others are often saved from error because they hesitate to follow the light of reason, when reason would lead them too far from the beaten track of received opinions. But such timidity and inconsistency were little in harmony with the spirit of Milton. He had learned in early youth, as a first principle, that, in the matter of religion, Scripture should be his only authority, reason his only guide; and in after life he was ever prepared to follow that guide whithersoever it might conduct.

The religious career of Milton appears to us, therefore, in a remarkable manner, at once to illustrate and to disprove the Protestant *Rule of Faith*. In him it was fairly tried, and it was found wanting. It would be difficult, we believe, to select from the whole range of Protestant writers any one who possessed in a higher degree, those qualities which are [pg 463] favourable to the exercise of private judgment. His distinguished biographer, Mr. Mitford, who was himself a Protestant clergyman, has spoken on this subject with great candour and ability. Referring to the treatise *De Doctrina Christiana*, he says:—

“It is acknowledged by all that it is written with a calm and conscientious desire for truth, like that of a man who had forgotten or dismissed the favourite animosities of his youth, and who had retired within himself, in the dignity of age, to employ the unimpaired energies of his intellect on the most important and awful subject of inquiry. The haughtiness of his temper, the defiance of his manner, his severe and stoical pride, are no longer seen. He approaches the book of God with an humble and reverential feeling, and with such a disposition of piety, united to so powerful an intellect, and such immense stores of learning, who would not have expected to have seen the

‘star-bright form’ of truth appear from out the cloud; but wherever we look, the pride of man's heart is lowered, and the weakness of humanity displayed. With all his great qualifications for the removal of error and the discovery of truth, *he failed*”.¹⁴

He not only failed, but he seems to have been a perfect type of that unsteadiness in error which St. Paul describes in his Epistle to the Ephesians: he was as a little child “tossed to and fro, and carried about with every wind of doctrine”. He wandered, we are told, “from Puritanism to Calvinism, from Calvinism to an esteem for Arminius, and finally, from an accordance with the Independents and Anabaptists to a dereliction of every denomination of Protestants”.¹⁵ When this was the fate of his gigantic intellect, how can humbler minds hope to attain success if they employ the same means?

It seems to us, therefore, that we can find some excuse for the errors of Milton in the false principles which he had imbibed in his youth. And, with all his faults, we cannot but revere the magnanimity of his spirit, the splendour of his genius. But we have no sympathy with those who, having the rich inheritance of an infallible authority for their guide in matters of religion, would yet claim for themselves the right to launch forth into the boundless sea of thought without restriction or restraint; who blindly embrace the conclusions of Milton, while they reject his premises; and who imitate him in his wanderings, while they cannot imitate that nobility of sentiment and that loftiness of eloquence which shed a lustre even around his errors.

The See Of Killaloe In The Sixteenth Century.

In the year 1463, *Matthew* or *Mahoun O'Griffa* was appointed by Pope Pius II., Bishop of Killaloe. He had hitherto held the canonry and prebend of Teampul-monin, in the diocese of Limerick, the annual revenue of which amounted to twenty marks, and the *Monumenta Vaticana* preserve an interesting fragment, which records the appointment of Donald Magillapadrig as his successor in that dignity: “Confertur ipsi canonicatus et prebenda de Tampolmonin in Ecclesia Limericensi quorum fructus viginti marcharum sterlingorum non excedunt et quos Mattheus electus Laonensis tempore suae promotionis obtinebat” (17 Decemb., 1463; pag. 455).

Dr. O'Griffa died in 1482, and was succeeded the same year by Terence O'Brien, who ruled the see for forty-three years, and, as Ware informs us, “was a prelate of great account among his people for his liberality and hospitality”.

Richard Hogan, a Franciscan, was chosen his successor in 1525, and after an episcopate of fourteen years, was translated to Clonmacnoise by Pope Paul III., on 16th June, 1539. He, however, enjoyed this new dignity only for a little while, as, a few days after his translation, he was summoned to his eternal reward.

It is remarkable that the episcopate of his successor in the see of Killaloe was equally short; for, *Tirlogh*, in Latin *Theodoricus O'Brien*, appointed its bishop in June, 1539, died before December the same year. Both sees being thus vacant at the same time, *Dr. Florence O'Gerawan*, i.e. Kirwan, was appointed bishop of Clonmacnoise and Killaloe on 15th December, 1539, the union of these sees being at the same time limited to the lifetime of this bishop. The following is the consistorial entry:—

“Anno 1539, 15 Decembris: Sua Sanctitas providit Ecclesiis Claonensi et Laonensi in Hibernia vacantibus per obitum Richardi et Theodorici de persona fratris Florentii Igernam (sic) ord. Fratrum Min. cum dispensatione ex defectu natalium et unione duarum Ecclesiarum ad vitam dicti Florentii”.

We have already had occasion to speak of this bishop when treating of the see of Clonmacnoise (*Record*, part 1., pag. 157); his episcopate was marked by many signal events, and his zeal in the defence of the Catholic faith merited for him the hatred of the enemies of our holy Church. He died in 1554, and had for his successor Terence O'Brien, who received his appointment in the beginning of Queen Mary's reign, and continued [pg 465] to administer the see till his death, which is registered by the *Four Masters* in 1569.

Malachy O'Molony was next proclaimed in consistory on 10th January, 1571. He suffered much from the agents of the Protestant establishment: “Plurima ab haereticis mala et nonnunquam carceris acrumnas passus est” (Mooney, *MS. Hist. Francis.*); and on 22nd of August, 1576, his translation to Kilmacduagh was solemnly promulgated in the Roman court.

His successor, *Cornelius O'Melrian*, O.S.F., was appointed the same month, viz., 26th August, 1576, and for forty-one years, till his death in 1617, he continued bishop of this ancient see. This prelate played an important part in the last great struggle of the Desmond chieftains; and we have intentionally passed rapidly over the preceding bishops, that space might remain for dwelling on the unpublished documents connected with his history. At the time of his appointment to the see of Killaloe, James Fitzmaurice was actively engaged on the Continent in enlisting the aid of the Catholic powers in favour of the Irish confederates. Before setting sail from Lisbon on 30th October, 1577, this chieftain wrote to Gaspar de Quiroza, Archbishop of Toledo, acquainting him with the disaster which had befallen our Bishop Cornelius, who, a little while before, having sailed from Rochelle for the Irish coast, was captured by pirates, and being despoiled of all he possessed, was obliged to return to the Continent. Fitzmaurice adds:—

“He (Dr. O'Melrian) is most devoted to us, and we confide to him all the secrets which are to be communicated to you connected with the succour which is to be sent to us; it would be most useful that he should accompany the expedition of troops, to instruct them as to the place for landing; as well as to conduct them to our quarters”.

The letter terminates with the sweet old Irish invocation “*spes nostra Jesus et Maria*”.

When at length a considerable body of Spanish troops set sail for Ireland, under the command of the unfortunate colonel St. José, the bishop of Killaloe accompanied them, but soon quitted their ranks to join the Irish camp and assist the native Desmond princes by his sacred ministry and counsel. In 1582 he was instructed by the Earl of Desmond to proceed to Spain and Rome, and negotiate whatever measures might tend to the succour of Ireland. The following letters addressed by this Irish chieftain to the reigning pontiff Gregory XIII., will be read with interest by all who are acquainted with that sad period of our history; they are extracted from the Vatican archives:

“SANCTISSIME PATER,

“In vinca Domini exercituum laboramus expugnando luteranam istam Angliae Reginam; toto enim hoc triennio elapso, prout [pg 466]jam bellum gerimus, in armis sumus. Nostrum omnemque statum omniaque nostra exposuimus periculo evidentissimo semper perdendi, bellumque istud in Hibernia propter causas subsequentes his tribus annis elapsis in manus libentissime assumpsimus, nimirum quod sanctae matris Ecclesiae causa erat, ac quod Vestra Sanctitas jussit, atque hortabatur ut rem inciperemus. Mihi meisque omnibus minime peperci, oppida, villas et pagos, arces et castra cum fratribus nostris Joanne et Jacobo de Geraldinis ac sexdecim aliis ex nostra domo, in hoc bello perdidimus: nihilominus quamdiu vita comes fuerit istud bellum prosequemur contra Angliae maledictam Reginam donec S. Sanctitas ac sua majestas Catholica nos juverit ut possimus haereticos propellere ex Hibernia totumque Regnum subijcere legibus sanctae matris Ecclesiae. Et quia hactenus praestolationem istius subsidii experimur, harum latorem

Episcopum Laonensem nostro et omnium nobilium hujus causae consensu ambasciatorem et sollicitatorem universi negotii ad Suam Sanctitatem et ad S. majestatem Catholicam mittimus cui V. Sanctitas omnem fidem dabit, illumque ita auscultet non secus quam nos si praesentes fuissetus auscultaret, rogantes obnixè V. Sanctitatem (cui pedes humili animo exosculamur) ut nostram inquietudinem et longam perturbationem animadvertat auxiliumque cum hoc nostro ambasciatore mittatur quo poterimus confringere audaciam adversariorum Christi Ecclesiae. Expediret denique ut V. Sanctitas auctoritatem nuncii in negotiis ecclesiasticis mitteret ad Laonensem Episcopum et potissimum ut ipsi liceat pontificalia officia exercere ubicumque se invenerit cum licentia ordinarii; vir enim spectatae vitae et virtutis magnaeque spei apud omnes est, huicque causae addictissimus, ac fidelissimus.

“Datum in Castris Catholicorum in Hibernia,
die 1 Septembris, 1582.

"Sanctitatis Vae. addictissimus servus,
“GEROL DESMOND”.

Two months later the second letter was addressed to the same great pontiff:

“SANCTISSIME PATER,

“Accepimus a presbytero Hiberno Sanctitatis vestrae litteras per Cardinalem Comensem datas Romae 6^{to} Augusti, quibus nobis patuit Sanctitatis Vestrae propensissimus animus, curaueque vigilantissima nedum erga nos sed etiam erga salutem totius Regni Hiberniae, adeo ut ad ejus voluntatem in hoc nihil addi potest, quam pollicetur nos reipsa experturos supernâ elementia opitulante. Quod vero commissum erat latori qui tulerit litteras ut spem nobis augeat ac ut in negotio hoc sancto persistamus pedefixo, suo muneri in hoc satisfecit. Intelligat V. Sanctitas quod quamquam nos omnia pene temporalia in hoc bello, fidei defensionis causa, amisimus, et quod multo vehementius nos angit in conflictibus contra Anglos Ecclesiae feroces hostes nostrum consobrinum D. Jacobum Geraldinum cum nostris postremo fratribus D. Joanne et Jacobo [pg 467]ac nonnullis aliis ex nostra domo qui successive in hoc bello occubuerunt, nihilominus tamen in hac Dei et Sanctitatis Vestrae

causa immobilis permaneo, superni Dei optimi maximi ac Sanctitatis vestrae praestolaturus auxilium quo possem severos Ecclesiae hostes propellere ex Regno, illiusque integrum statum legibus sanctae matris Ecclesiae subjicere; proinde V. Sanctitas quemadmodum in ea omnem spem habemus non differat nos juvare et quod reliquum erit cum Rege Catholico ferventissime et quam citissime agere ut auxilium jam nobis mittatur plenum et sufficiens quo finem huic rei intentae imponamus.

“Ad sollicitandum istud negotium, mense Septembri praeterito misimus nostrum ambasciatorem Epum. Laonensem ad S. Vestram et ad Regem Catholicum quem plurimi faciat V. Sanctitas omnem fidem illi praebendo in omnibus rebus attinentibus ad nos et ad universum statum illius belli; post cujus discessum ducentos Anglos in uno conflictu interfecimus, ea enim quae Deus operatus est per nos contra Anglos ante ejus discessum, autumo illum S. Sanctitati aperuisse: expediret denique omnino ut cum hoc subsidio postulato veniat aliquis Nuncii auctoritatem habens inter nos, qui iudicio omnium censendus esset Laonensis, ad quem S. Sanctitas dignetur etiam harum responsum dirigere ut via sibi cognita nos mox certiores reddat. Vivat V. Sanctitas nobis in multos annos.

“Ex Castris Catholicorum in Hibernia,
die 6^{to} Novembris, 1582.
“GEROL DESMOND”.

A third letter, dated 18th June in the following year, repeats the same sentiments of devoted attachment to the Holy See, and petitions that the lands of the deceased James Geraldine should be granted to his son, Gerald. It thus concludes:

“Litteras vero super praedictas terras confectas, V. Sanctitas dignetur mittere per Nuntium Apostolicum Hispaniarum ad nostrum Ambasciatorem Cornelium Episcopum Laonensem cui cupimus ut V. Sanctitas fidem in omnibus adhibeat, eumque fretum auctoritate Nuntii cum subsidio mittendo ad nos dignetur mittere, quia aliis palmam praeripit, quibus hoc esset concedendum. Valeat ac vivat V. Sanctitas in Nestoreos annos.

“Ex Castris Catholicorum in Hybernia, 18 Junii.

“Stis. Vae. servus addictissimus prout opera ipsa comprobant contra
adversarios hostesque ecclesiae.

“DESMOND”.

In the Vatican archives is also preserved a series of letters of our bishop Cornelius, addressed to Rome in the years 1582, 1583, and 1584. They are all connected with the diplomatic mission which he received from the Geraldine princes, and some of them throw considerable light on the contemporary civil and ecclesiastical history of our island.

Before, however, we present them to the reader, we deem it [pg 468] necessary to remark that the relations of our bishops and of the Holy See with the native princes during the wars of Elizabeth's reign have often been misconstrued, in the writings of those who were led away by the frenzy of political agitation. The Irish chieftains had at this period the title and privileges of independent princes; and as such they were entitled to defend with the sword those religious and civil rights which the government of Elizabeth attempted to destroy. Hence, their struggle merited the sympathy of the Holy See and the blessing of our martyr-clergy. But far more distant than heaven is from earth were the chivalry of James Fitzmaurice and the heroism of Hugh O'Neill from that accursed Fenian blight which, alas! has now-a-days fallen upon some of our benighted and deluded countrymen!

We give these letters in chronological order, and in their original language, that thus our readers may be the better able to appreciate the sentiments of this distinguished bishop of Killaloe.

1. The first letter is dated Lisbon, 22nd September, 1582, and was addressed to his Eminence Cardinal de Como:—

“ILLUSTRISIME DOMINE,

“Litteras comitis Desmoniae Generalis Catholicorum in Hibernia cum nostris
litteris mittimus ad suam Sanctitatem ex quibus sua Dignatio Illustrissima
plenius intelligat negotium, operamque det, quaeso, ut huic sanctissimae
caussae jam tandem subveniatur: alioquin actum erit de comite Desmoniae

caeterisque Catholicis qui arma elevarunt fidei defensionis causâ, patriaque illa Hibernia impiâ potestate reginae maledictae Angliae omnino subjiciatur. Sua Dignatis Illustrissima dignetur responsum illarum litterarum suae Sanctitatis per Nuntium Apostolicum Hispaniarum ad nos mittere. Caeterum talis clausula habetur in mea Bulla quod extra meum episcopatum etiam cum licentia ordinarii non possem exercere pontificalia. Proinde rogo suam Dominationem Illmam. ut dignetur alloqui ea de re Suam Sanctitatem, mihi hinc oris oraculo vel in scriptis impetrare ut possim cum licentia ordinarii exercere pontificalia, multum enim hoc proderit. Valeat sua dominatio Illustrissima in Christo Jesu.

“Ex Ulissipona 22 mensis Sept., 1582.

“Illustrissimae Dominationis vestrae,

“addictissimus servus,

“CORNELIUS LAONENSIS Episcopus”.

2. The second letter is addressed to Pope Gregory XIII., from Madrid, the 4th December, 1582:

“BEATISSIME PATER,

“Cum primum appuleram Ulissiponam ex Hibernia, scripsi Suae Sanctitati omnem statum totius istius negotii Hiberniae litterasque [pg 469]comitis Desmoniae Generalis Catholicorum per Nuntium Apostolicum Hispaniarum suae Sanctitati misi. Tandem usque modo omni diligentia egi cum rege Catholico, ut negotio subveniret: hanc resolutionem jam recepi, usque quod sua Majestas sit parata ut subveniat ac quod in Lusitania habet milites paratos ad expeditionem istius negotii, et quod istud cum sit negotium sanctae matris Ecclesiae et fidei restituendae in Hibernia, necesse esse, ut Vestra Sanctitas juvet atque subveniat, et istud subsidium quod exigitur est pecuniarum ut praedictis militibus stipendia solvantur. Tandem jussum est ut ego conferrem me Madritium ut cum Nuntio Apostolico et Cardinali Granvelano agerem ut ipsi cum Sua Sanctitate solertes agant, ut Sua Sanctitas ordinet quibus mediis et quo ordine hoc fiat: quare cum istud negotium sit positum in sinu

Sanctitatis Vestrae, atque ab ipso omnino emanat, rogo atque obtestor S. Sanctitatem ut dignetur subvenire, ordinemque praescribere, ut pecuniae in subsidium et ad expeditionem istius negotii dentur ut militibus stipendia solvantur, digneturque cum sua Majestate agere ut videlicet sine dilatione incipiat vel cum ipsa postulat, ut non differatur, alioquin actum erit de statu totius regni Hiberniae et scintilla fidei quae illic adhuc remanet omnino extinguetur, illudque Regnum quod semper in gremio sanctae matris Ecclesiae quievit et floruit omnino subjicietur impiae potestati Reginae maledictae Angliae. Comes enim Desmoniae postquam perdidit in hoc bello suos fratres germanos cum nonnullis nobilibus ex sua domo, ingenue fatetur se non posse amplius sustinere istud bellum sine subsidio sibi pollicito: est igitur illi cito subveniendum antequam viribus omnino enervetur. Vestra Sanctitas recordetur hanc causam esse suam, fidei et sanctae matris ecclesiae, et Hibernorum qui semper vere filii Sedis Apostolicae sunt, et potissimum comitis Desmoniae qui omnia sua omnemque suum statum periculo semper perdendi exposuit fidei defensionis causâ. Valeat et vivat Sanctitas Vestra in Nestoreos annos.

“Madritii, quarto die mensis Decembris 1582.

“Sanctitatis V. humilis filius et addictissimus servus,

“CORNELIUS LAONENSIS Episcopus”.

3. The letter to the Holy Father was accompanied by another short letter addressed to the *Cardinalis Comensis* as follows:

“ILLUSTRISIME DOMINE,

“In litteris Suae Sanctitatis poteris videre responsum regis Catholici: respondet enim se habere milites in Lusitania ad expeditionem nostri negotii Hiberniae, sed necesse esse ut Sua Sanctitas subministret pecunias ut parti militum stipendia solvantur. Proinde cum regis ordine veni Ulissipona Madritium ut satagerem cum Nuntio Apostolico et Cardinali Granvelano, et hoc Suae Sanctitati detegatur ut cum ejus ordine et subsidio res incipiatur; demonstrat enim rex nobis se promptissimum esse ut jam subveniat. Cum igitur istud negotium omnino emanet a sollicitatione Dominationis suae

Illmae. tum cum Sua Sanctitate, tum etiam cum Rege Catholico, rogo [pg 470]atque obtestor suam Dominationem Illmam. ut omni diligentia agat, ut non differatur istud subsidium mittere ad illos nobiles qui toto hoc triennio elapso istud exspectant quique omnia sua fidei defensionis causa perdiderunt....

“Ex Madritio 4 Decemb., 1582.

“Illustrissimae ac Reverendissimae Dominationis Vestrae,

“CORNELIUS LAONENSIS Episcopus”.

4. On the 26th of May, the following year, the next letter was addressed from Madrid to the same cardinal:

“ILLUSTRISIME AC REVERENDISIME DOMINE,

“Accepi suae Dominationis Illustrissimae litteras datas Romae die 4 Januarii quibus hactenus distuli respondere donec ultimam resolutionem a sua Majestate Catholica reciperem, quam suae Dominationi Illustrissimae significare censeo ut eam detegat Suae Sanctitati. Quae quidem est haec, nempe quod sua Majestas sit impedita donec videat exitum classis euntis in insulas Tertiae, et ea ratione ducebatur ut me detineret quia comes Desmoniae scripsit ad suam Majestatem quod si in meo adventu (in quem tum ipse tum caeteri nobiles tantum confiderunt) istud negotium Hiberniae non haberet prosperum successum, statim sisteret gradum gerendi bellum, inducias foedusque componeret cum regina maledicta Angliae. Jam vero ad nutriendum interim bellum in Hibernia, sua Majestas Catholica praestitit nobis magnam summam pecuniarum, armorum et victualium cum quibus ego hinc proficiscor ad portum maris ut illa necessaria sine dilatione et cum omni diligentia illinc transmittam ad comitem Desmoniae. Restat jam ut Sua Sanctitas persaepe commendet istud negotium Hiberniae suae Majestati Catholicae ut finito negotio praedictae insulae statim negotium nostrum incipiat.

“Caeterum secretarius suae Majestatis Catholicae rogat me ut exerceam Pontificalia in quodam episcopatu hîc cum certa pensione donec sua Majestas

parata erit ad mittendam classem in Hiberniam gratumque hoc esse, minusque fastidiosum regi affirmat qui tantis oneribus sumptibusque premitur. Jam in superioribus litteris petii facultatem exercendi pontificalia et de hoc jam recepi responsum Suae Sanctitatis per suam Dominationem Illustrissimam videlicet Suam Sanctitatem dixisse hoc adversari decretis concilii Tridentini et propterea nullatenus posse concedi. Intelligat Sua Sanctitas hanc clausulam non esse positam in mea Bulla propter meam culpam, neque etiam esse positam in Bullis Episcoporum Hibernorum post me creatorum qui nihil perpessi sunt in hoc bello Hibernico, quemadmodum ego perpessus sum nullaue praeclara facinora ediderant quemadmodum longe lateque constat me edidisse, nobilesque Hibernos esse valde offensos quando dicebam, in campo me non posse exercere pontificalia extra meum episcopatum etiam cum licentia ordinariorum loci. Proinde sua Dominatio Illustrissima rogabit Suam Sanctitatem ut dignetur in praemium laborum susceptorum et suscipiendorum in hoc bello Hibernico mihi vivae vocis oraculo vel in scriptis concedere facultatem exercendi pontificalia, et hîc interim [pg 471]quoad rex me detineat, cum licentia ordinariorum, vel, sede vacante, jussu regis et in Hibernia eodem modo et ubi non sunt Episcopi Catholici, jussu comitis Desmoniae generalis Catholicorum possem similiter exercere pontificalia, servatis servandis a jure et a sacro concilio Tridentino, contra quod aliquid moliri illicitum esse semper duxi. Quare obtestor suam Dominationem Illustrissimam ut statim et sine dilatione dignetur de hoc agere cum Sua Sanctitate, hancque licentiam mihi mittere per Nuncium Apostolicum Hispaniarum, hocque intelligat non minus gratum esse regi quam comiti Desmoniae, aliisque nobilibus ejus partem tuentibus in Hibernia. Christus Jesus suam Dominationem Illustrissimam perquam diutissime nobis sospitem conservet.

“Madritii, die 26 Maii, 1583.

“Illustrissimae Dominationis Suae,

“addictissimus servus,

“CORNELIUS LAONENSIS Episcopus”.

5. Six weeks later, the Bishop of Killaloe again writes to the Cardinal de Como, acquainting him with the measures taken by the Spanish monarch:

“ILLUSTRISIME AC REVERENDISIME DOMINE,

“Quamquam ternas ante has de eadem scripsi tibi litteras superioribus diebus, tamen ne forte ad ejus manus minime devenerint, censui rursus has tibi scribere litteras ut intelligat regem Catholicum mihi respondisse impossibile esse jam classem mitti in Hiberniam antequam sua Majestas intelligat exitum classis quae jam proficiscitur ad insulas Tertiae contra Dominum Antonium. Interim tamen ut bellum facilius sustentetur, in Hibernia praestitit mihi subsidium pecuniarum, armorum et victualium transmittendum mox in Hiberniam ad comitem Desmoniae; quorum omnium causa et ex mandato regio in hoc portu permaneo, donec praedicta omnia mittam ad Hiberniam quod spero fiet propediem cum nihil aliud praestolatur nisi ventus prosperus. Interea Rex Catholicus jussit ut pensio mihi assignaretur qua honeste potuissem me sustentare super Episcopatu Tigitanensi, interimque classis praeparabitur, cujus proprius pastor oblitus sui status se junxit Domino Antonio contra Regem Catholicum...

“Ex portu de Scetufill, 5 Julii, 1583”.

6. The next letter is dated from Lisbon, the 1st August, 1583, and is addressed to the Holy Father Gregory XIII.:

“SANCTISSIME PATER,

“Comes Desmoniae generalis Catholicorum ferventer scripsit ad me superioribus diebus ut cum Sua Sanctitate agerem ut dignaretur per Bullam authenticam vel per Breve Apostolicum concedere terras possessionesque illorum qui interfecerunt Dominum Jacobum Geraldinum generalem vestrae Sanctitatis in Hibernia, Geraldo Geraldino filio praedicti D. Jacobi ut ipsi Geraldini vehementius habeant ansam inserviendi Sedi Apostolicae atque Suae Sanctitati, ac ut adversarii [pg 472]hoc concedendo terreantur ne Sedem Apostolicam impugnent neve istius Sedis Sanctissimae sint adversarii inter nos qui Anglis faveant atque opulentur posthac quemadmodum

hactenus. Quocirca nonnihil conducet negotio atque ad augmentationem fidei in Hibernia ut Sua Sanctitas consideret servitium Geraldinorum et potissimum Jacobi Gerald generalis Vestrae Sanctitatis et istius postremo comitis Desmoniae qui totis viribus impugnat maledictam reginam ejusque fautores quique progressus felices ipsam impugnando hactenus habuit. Proinde in praemium horum omnium Vestra Sanctitas dignetur concedere litteras atque possessiones istorum qui interfecerunt D. Jacobum Geraldinum, Domino Geraldo Geraldino filio praedicti D. Jacobi Generalis Vestrae Sanctitatis prout comes Desmoniae Suae Sanctitati fusissime scripsit: quod si fecerit Sua Sanctitas rem gratissimam comiti factura sit coeterosque pene nobiles Hibernos concitabit ut sibi Sedique Apostolicae inserviant, domumque Geraldinorum semper sibi addictissimam et promptissimam experietur. Christus Jesus Suam Sanctitatem nobis sospitem conservet in multos annos.

“Ex Ulissipona, 1 Augusti, 1583.

“Sanctitatis Vestrae,

“filius atque addictissimus servus,

“CORNELIUS LAONENSIS Episcopus”.

7. The seventh letter is addressed from Lisbon on 26th Nov. 1583, to Cardinal de Como:

“Persaepe hactenus egi litteris cum Sua Sanctitate atque praesentia et verbo cum sua Majestate Catholica ut omnia tandem dignentur subvenire Regno Hiberniae misere hactenus desolato. Sed cum jam tempus adest subveniendi, censi rogare suam Dominationem Illustrissimam ut dignetur agere cum Sua Sanctitate, ut cum Rege Catholico agat, ut haec classis quae revertitur ex insula Tertiae transmittatur ad Hiberniam, qua transmissa Hibernia legibus sanctae matris ecclesiae atque Anglia propediem subjicietur. Denique haec erit proximior via qua sua Majestas habeat Flandriam quietam sibi subjectam....

“Valeat Dominus meus Illustrissimus, in Christo Jesu.

“Ex Ulissipona, 26 Novemb., 1583.

“Dominationis Suae Illustrissimae,

“addictissimus servus,

“CORNELIUS LAONENSIS Episcopus”.

8. Three months later another letter was addressed to the same cardinal, conveying the sad intelligence of the assassination of the Earl of Desmond:

“ILLUSTRISIME DOMINE,

“Suam Dominationem Illustrissimam certiore reddere censui de hoc negotio Hiberniae ut Suam Sanctitatem dignetur de illo informare. Imprimis intelligat Illustrissimus Dominus, Geraldum Comitem Desmoniae generalem Catholicorum qui erat caput istius [pg 473]belli Hibernici occubuisse nuperrime et traditorie in bello, ejusque caput post ejus mortem a nefariis Anglis erat abscissum et transmissum ex Hibernia ad maledictam Angliae nominatam reginam. Tristissima ac longe moestissima nova nobis sunt ista ac prorsus de reductione Hiberniae ad fidem principia desperandi, nisi S. Sanctitas mox manus adjutrices porrigat, tum subveniendo militibus aut pecuniis, tum etiam scribendo quam effectuosissime ad suam Majestatem Catholicam, ut non differat jam mittere classem ad Hiberniam, qua transmissa universa Hibernia legibus sanctae matris Ecclesiae subjicietur eritque etiam principium et solidum fundamentum reductionis Angliae ad fidem: quod si hoc non fiet mox antequam Regina maledicta iniquis suis legibus subjiciat sibi regnum cum non sit aliquis principalis qui resistat, actum erit de toto negotio et scintilla fidei quae huc usque illic viguit omnino extinguetur, eritque Hibernia non secus quam Anglia referta iniquis legibus maledictae Reginae....

“Ex Ulissipona, 13 Februarii, 1584.

“Illustrissimae Dominationis Vestrae,

“addictissimus servus,

“CORNELIUS LAONENSIS Episcopus”.

IX. On the 7th of September, 1584, our Bishop again writes to His Eminence:—

“ILLUSTRISIME DOMINE,

“Hactenus praestolabar cupidissimo animo profectionem classis Suae Sanctitatis ac majestatis Catholicae in Hiberniam quod cum mihi in mandatis a magnatibus Hiberniae et potissimum a Comite Desmoniae incumbibat, ut hoc sollicitarem, officio non defui hactenus ut probe novit Sua Dominatio Illustrissima. Jam vero cum praedictus comes Desmoniae generalis Catholicorum sit interfectus in bello neminemque alium moliri bellum in Hibernia post ejus mortem, quinimo omnes obtemperant Reginae, comperio negotium esse tepidum frigidumque, ac proinde censui oratum iri suam Dominem. Illustrissimam ut dignetur alloqui Suam Sanctitatem, erga meam penuriam et necessitatem rerum necessariorum, ob id quod nihil ex propriis redditibus recipio, et cum Sua Sanctitate satagere ut aliquid mihi quolibet mense vel annue subministretur per collectorem Apostolicum commorantem Ulissiponae, ubi cupio commorari prope nova Hiberniae, donec co classis mittatur aut Regina moriatur, quia sine una aut altera nequeo adire Hiberniam....

“Ulissiponae, 7 Septembris, 1584.

“Sua Dominatio Illustrissima dignetur favere Roberto Laseo Cancellario Limericensi qui nedum est vir probus ac generosus sed etiam quam multa perdidit in bello praeterito Hibernico cum Comite Desmoniae.

“Illustrissimae ac Reverendissimae Dom. V.

“addictissimus servus,

“CORNELIUS LAONENSIS Episcopus”.

X. Another letter was addressed to the Pope on the same day:

“BEATISSIME PATER,

“Postquam in campo Catholicorum cum comite Desmoniae, caeterisque nobilibus Regni Hiberniae solus episcopus tribus annis manseram labores improbos sustinens praedicando, admonendo et imperando quae expediebant saluti hominum progressuique belli contra rabidissimos ferocesque ecclesiae hostes Anglos, nihilque interim recipiens ex proprio Episcopatu, cujus redditus percipiuntur a quodam haeretico nominato Episcopo qui illic residet ex parte Reginae maladictae Angliae, me tandem contuli ad has partes jussu comitis Desmoniae Generalis Catholicorum caeterorumque nobilium sibi adhaerentium ut officio Ambasciatoris fungerer, nedum cum Sua Sanctitate sed etiam cum sua Majestate Catholica ut dignaretur sibi mittere classem vel saltem mediocre subsidium quo bellum feliciter incoeptum ad optatum finem deduceret, quemadmodum ipse comes suis litteris adhuc vivens persaepe detexit Suae Sanctitati. Ego hactenus saepissime egi cum sua Majestate sed subsidium illud exiguum quod extorsi a sua Majestate adeo dilatum erat ut comes Desmoniae viam universae carnis ingrederetur in bello, antequam navicula illa cum armis illis et pecuniis Hiberniam appulerat, unde rediit cum eodem subsidio ad ministros suae Majestatis Ulissiponam. Porro post mortem praedicti comitis Desmoniae nullus est in Hibernia qui agit bellum contra Regnam neque autumo fore postquam viderant comitem Desmoniae se suumque statum exspectando subsidium tanto tempore, ne se suumque statum similiter, deperdant quin potius tota Hibernia obtemperet Reginae. Proinde opus non erit posthac subsidio mediocri sed classi: quod Sua Sanctitas dignetur agere cum sua Majestate. Quod si transmittatur, statim universa Hibernia atque postmodum Anglia legibus sanctae matris ecclesiae subjicietur; brevior, aptiorque haec via quoque erit ut Rex Catholicus habeat Flandriam quietam sibi subjectam.

“Ulissiponae, 7 Sept., 1584.

“Sanctitatis V. filius,

“atque addictissimus servus,

“CORNELIUS LAONENSIS Episcopus”.

XI. The last and most important of Dr. O'Melrian's letters is dated the 29th October, 1584. It is addressed to Cardinal de Como, and besides many particulars connected with the Archbishops of Cashel and Tuam, and the Bishops of Emly, Ferns, Ossory, Ross, and Limerick, we also gather from it that our bishop, before his promotion to Killaloe, had held some other see, probably that of Kilmacduagh:

“ILLUSTRISIME DOMINE,

“Decem sunt anni elapsi ex quo Sua Sanctitas me creavit Episcopum: tamen postquam me contuli ad Hiberniam nullum ingressum habui ad meum Episcopatum qui occupatus a quodam Pseudo-Episcopo Reginae qui dumtaxat colligit redditus, minime gerens curam animarum, totoque hoc tempore neque ingressum unius diei in Episcopatum, neque obolum ex meis redditibus potui habere [pg 475]neque spero me habiturum nisi post mortem Reginae, aut nisi classis a S. Sanctitate et Majestate Catholica mittatur cum qua eo irem. Itaque hactenus cum Comite Desmoniae caeterisque nobilibus sibi adhaerentibus mansi in Hibernia in castris Catholicorum, me praebens ut decuit praeclarum exemplar omnium virtutum improbos labores et inedia sustinens, praedicando, exhortando, admonendo, severitatem aliquoties cum lenitate adhibendo in corrigendis vitiis, et persuadendo semper quae expediebant saluti hominum progressuique belli contra rabidissimos atque feroces Ecclesiae hostes Anglos. Placuit tandem comiti Desmoniae generali Catholicorum, caeterisque proceribus me mittere huc, fretum auctoritate Ambasciatoris ut cum Sua Sanctitate atque Majestate Catholica agerem de classe vel subsidio mittendo ad Hiberniam quod cum omni diligentia cum Sua Sanctitate litteris egi ut probe novit sua Dominatio Illma.; verbo voce et praesentia egi cum sua Majestate Catholica vixque extorsi naviculam unam cum armis et pecuniis, quae antequam appulerat Hiberniam, repererat comitem Desmoniae interfectum esse in bello, caeterosque suos dilapsos esse adeo ut mentio belli minime habebatur: tunc rursum idem subsidium rediit huc, quod ego integrum restitui ministris suae Majestatis Catholicae. Jam nihilominus solerter ago cum sua Majestate ut dignetur classem vel saltem subsidium mediocre mittere ad Hiberniam cum Domino Mauritio Geraldino consobrino comitis Desmoniae qui his diebus causâ implorandi subsidium tum a S. Sanctitate tum a Rege Catholico evolavit ex Hibernia huc. Vehementer etiam rogo suam Dominationem

Illustrissimam ut dignetur agere cum Sua Sanctitate ut hinc subveniat ac ut S. Sanctitas mox dignetur ea de re agere cum sua Majestate; quia iste est vir strenuus, nobilis et expertissimus in rebus bellicis, qui in bello hoc praeterito comitis Desmondiae nonnullas victorias principales habuit contra Anglos: Sua enim Sanctitas plurimum tenetur Geraldinis qui se suumque statum exposuerunt periculo semper perdendi in servitio Suae Sanctitatis. Caeterum sua Dominatio Illustrissima intelligat me hic Ulissiponae morari prope nova Hiberniae et sollicitando continue cum sua Majestate ut mittat subsidium alicujus momenti vel classem ad Hiberniam....

“Creatio Episcoporum jam, nisi mittatur classis nedum est inutilis sed nociva quia hoc tempore aegre possunt creari atque prodesse in Hibernia vel in Anglia (praeter partes Ultoniae in Hibernia) quia utrobique non habent nisi latere et incedere vestitu saeculari vel militari strictis cinctisque gladiis et pugionibus sine tonsura aut corona, sine habitu clericali sine redditibus et obedientia a suis: et ita adhuc si convincantur episcopos esse poena capitis vel perpetui carceris plectentur et eorum parentes vel consanguinei apud quos versabantur secrete, omnia bona sua et terras per edictum Reginae fisco perdent....

“Archiepiscopus Cashellensis gloriosissime et constantissime martyrium perpassus est Dublinae, qui quamvis acerrimis poenis agitabatur nullo pacto poterat duci, ut iniquis legibus Reginae obtemperaret; qui ex primo die quo se contulit ad Hiberniam in habitu saeculari (aliter enim non potuit) versabatur, donec erat comprehensus ut [pg 476]explorator, qui quidem cum erat percontatus si erat Ecclesiasticus necne, fassus est se Archiepiscopum esse et in fide constantissime et gloriosissime mortuus est. Sed, quod doleo, jam non publice sed secreto et sine plebe martyrio coronantur, quem ad modum iste archiepiscopus a tribus dumtaxat militibus erat suspensus ne alios incitaret aut inflammaret ad Christianam religionem.

“Episcopus vero Imolacensis constans in fide carceribus Dublinae detinetur cui jam preparant ocreas plumbeas ut adhibito igne (quem ad modum fecerunt prius Archiepiscopo) in tormentis fidem deneget. Episcopus vero Feruensis, prius consentiens Anglis, poenitentia ductus ultro se obtulit pro fide qui jam teterrimis carceribus sine foramine lucis detinetur. Archiepiscopus Tuamensis non aliter erat in Hibernia quam in habitu saeculari, qui postquam rediit ad Hispaniam, diem clausit extremum. Thomas

vero Ossoriensis Episcopus mansit in Hibernia aliquot mensibus in habitu saeculari, tandem contulit se ex Hibernia ad Hispaniam. Episcopus Limericensis et Episcopus Rossensis postquam venerant Roma in curia Regis Hispaniarum degunt.

“Videat Dominus meus Illustrissimus quod horum Episcoporum creatio magis obest quam prodest, quamvis illic affirmarunt se posse prodesse; proinde alii non sunt audiendi qui petunt promoveri ad Episcopatus, quum obesce potius possunt quam prodesse. Valeat Dominus meus Illustrissimus in Christo Jesu.

“Ulissiponae, 29 Oct. 1584.

“Illustrissimae ac Reverendissimae Dominationis V.

“addictissimus servus,

“CORNELIUS LAONENSIS Episcopus”.

This is the last letter we have met with from the illustrious Bishop of Killaloe, Dr. O'Melrian. His episcopate continued till 1617; yet the only event recorded concerning him during this long interval is his having examined the work of Stanihurst, *De Moribus et Rebus Hiberniae*, and on the margin opposite each error his solemn condemnation was found marked with the simple formula: *mentitur* (*Hist. Cath.*, pag. 121).

As regards the bishops of the Establishment, that of *James Curyn*, or *Corrin*, seems to have been the first appointment made by King Henry VIII. Some call him Bishop of Killaloe as early as 1529, during the episcopate of Dr. Hogan; others date his appointment from 1539/40. At all events it is probable he is the bishop that is referred to in the letter of Dr. Browne to Lord Cromwell on 16th February, 1539/40, when he complains that the Lord Deputy *in O'Brien's country* “deposed a bishop who was promoted by the king's highness, ... and he that the Lord Deputy hath now promoted to the same is a Gray Friar (Dr. O'Kirwan), one of the holy confessors of the late Garrantys, even as rank a traitor as ever they were” (*State Papers*, iii. 123). Dr. Corrin resigned the see in 1546, and Cornelius O'Dea was appointed by the king in July, the same year, and, [pg 477] as Ware tells us,

he held the see about nine years. The next crown nominee was Moriertach O'Brien. Though appointed by Queen Elizabeth in 1570, he was for a long time content with the enjoyment of the temporalities of the see, and it was only in 1577 that he received episcopal consecration. John Rider, the next Protestant bishop, was appointed in 1612: he is chiefly remarkable for a Latin dictionary which he compiled, and in which he was accused of taking both the substance and words from the Lexicon of Thomas Thomatius.

The Sacrament Of Penance In The Early Irish Church.

The name *Soul's-friend* (in Irish,) was a characteristic title used in the old Irish language to designate those who are now called *confessors*, whose mission it is to receive the confessions of the faithful and to heal by the sacrament of penance, the spiritual wounds inflicted on the soul after baptism. "Sure we are", writes Usher, "that it was the custom of the faithful in our ancient Church, to confess their sins to the priests, that they might be made partakers of the benefit of the keys for the quieting of their troubled consciences"—*Discourse on the Religion, etc.*, p. 46.

Our old commentator, Claudius, more than once repeats this doctrine, and teaches that the power of forgiving sins was granted by the divine Redeemer to His apostles and their successors in the priesthood: "The power of loosing and binding", he says, "was granted to all the apostles by our Saviour, when, appearing to them after His resurrection, He breathed upon them, and said: Receive ye the Holy Ghost: whose sins you shall forgive, they are forgiven, and whose sins you shall retain, they are retained. Even to the present day this duty devolves upon the Church in its bishops and priests, and having examined each sinner's cause, they absolve those whom they find humble and truly penitent, from the fear of eternal

death, but such as they find to persist in their sins, these are bound down unto never-ending torments”—*In Matth. Codex Vatican.*, fol. 149, b.

Elsewhere, expounding the history of the man who was sick with the palsy, he remarks: “The scribes say truly that none can forgive sins save God alone, who also it is that forgives through those to whom he has given the power of forgiving”. And again, “St. John teaches us, in regard to the remission of sins, that our Saviour after His resurrection promised to His disciples [pg 478] that those shall be bound whom they shall bind, and those shall be loosened whom they shall loosen”—*In Matth. ibid.*, fol. 81, and *Usher*, loc. cit., pag. 48.

The old penitential canons of our Church will serve as a practical commentary on these texts of Claudius. Thus, in the synod held by our apostle, together with Auxilius and Isernimus, about the year 450, we find the canon:

“A Christian who has committed murder, or fornication, or gone to a soothsayer after the manner of the gentiles, for every such crime shall do a year of penance: when his year of penance is accomplished he shall come with witnesses, and afterwards he shall be absolved by the priest”.¹⁶

St. Finnian too prescribes:

“Si quis rixam faciat de clericis aut ministris Dei, hebdomadam dierum poeniteat cum pane et aqua et petat veniam a Deo suo et proximo suo, plena confessione et humilitate et sic potest Deo reconciliari et proximo suo”.¹⁷

The synodical canons *de Arreis*, in one decree declare as the substitute for the penance of a year:

“Tres dies cum mortuo sancta in sepulchro, sine cibo et potu et sine somno sed cum vestimento circa se, et cantatione psalmorum et oratione horarum per confessionem et votum sacerdoti”.

And in another case they enact a similar penance:

“post confessionem peccatorum coram sacerdote et plebe post votum”.¹⁸

The penitential of St. Columban commands him who had innocently told an untruth “to confess his fault to the person whom he deceived and to the priest”.¹⁹ Again, youths before their twentieth year committing certain sins, were ordered for the first offence “having confessed, to do penance for twenty days before they should approach the holy Communion”.²⁰

St. Columbanus is even more minute in treating of this sacrament. Thus, in canon the fourteenth, he lays down the penance for the sin of adultery, and adds that this penance being performed by the sinner “culpa illius per sacerdotem abstergetur”. Should his sin be a sin of desire, “Confiteatur culpam suam sacerdoti et ita quadraginta diebus in pane et aqua poeniteat”.²¹ Special diligence, too, was to be observed when preparing to approach [pg 479] the Holy Eucharist, and not only the heinous crimes, but even the venial faults were to be confessed. “Confessiones autem dari diligentius praecipitur, maxime de commotionibus animi, antequam ad missam eatur, ne forte quis accedat indignus ad altare, id est si cor mundum non habuerit”.²²

In the ancient collection of canons made for the use of our Irish Church about the year 700, there is one book (the 48th) entitled *de Poenitentia*. The thirty-three chapters into which it is divided are for the most part moral or disciplinary: as, for instance, the twenty-fifth chapter, which enjoins that all penitents should receive *imposition of hands* from the priests during Lent, moreover, should carry the dead to the place of sepulture, and there inter them, and, in fine, should present themselves kneeling at all the functions of the Church from Easter to Pentecost. There are, however, some incidental passages which beautifully illustrate the idea entertained by our fathers of the necessity and advantages of sacramental confession. Thus in the third chapter the words of St. Augustine are adopted:

“Why will the sinner seek to conceal what he committed in the presence of God? Why will he blush to confess those sins with which he did not blush to

stain his own soul? Therefore, let him defray by confession what he has contracted by sinning; let him by satisfaction wash away the stains which defile his soul; let him by vigilance supply for his former neglect; let him for the future be a follower of Christ by virtuous deeds, as hitherto he had followed Satan by his sins; and he may rest assured that God will not punish him for those crimes which he has confessed”.

Subsequently it adopts the well-known passage from the Homilies of St. Gregory the Great:

“As the physician cannot apply his remedy unless he knows in what the malady of his patient consists, so cannot sins be healed without confession; for, with our heart we believe unto justice, but with our lips confession is made unto salvation. He who conceals his sins cannot be directed; but he who confesses them and relinquishes them all, will obtain mercy”—*Collect. Hib. Canonum*, xlviii. 3.

In the other fragments which are still preserved of our early literature, we find many passages connected with the same great sacrament. Thus St. Mochta, in his *Apologia*, amongst the other articles of faith, professes: “Poenitentiam peccatorum plenissima fide suscipimus ac veluti secundam gratiam suspicamur” (see *Essays on the Early Irish Church*, pag. 302); that is to say, it is the only plank that remains to him after shipwreck.

[pg 480]

Amongst the Irish MSS. preserved in the public library of Basle, in Switzerland, there is one (Ff. iii. 15) which presents a curious form of prayer to be observed by our clergy when administering the sacrament of penance. We give it in full in its original language; the reader will remark that it omits the form of absolution, for which it refers to *the sacramentary*, and the words which we here enclose within parentheses are written as rubric in the original manuscript:

“Incipit ordo ad poenitentiam dandam.

“Credis in Patrem et Filium et Spiritum Sanctum? *Respondet*: Credo.

“Credis, quod istae tres personae, quo modo diximus, Pater et Filius et Spiritus Sanctus, tres sunt, et unus Deus est? *Respondet*: Credo.

“Credis, quod in ista ipsa carne in qua nunc es, habes resurgere in die iudicii et recipere sive bonum sive malum quod egisti? *Respondet*: Credo.

“Vis dimittere illis quicumque in te peccaverint, Domino dicente, si non remiseritis hominibus peccata eorum, nec Pater vester coelestis dimittet vobis peccata vestra? *Respondet*: Dimitto.

“(Et require diligenter; si est incestuosus, si non vult ipsa incesta dimittere, non potes ei dare poenitentiam: et si vult ipsa incesta dimittere, *fac eum confiteri omnia peccata sua*, et ad ultimum diecre.)

“Multa sunt peccata mea, in factis in verbis et in cogitationibus”.

(Tunc da illi poenitentiam et dic istas orationes super eum.)

“Oremus. Praeveniat hunc famulum tuum *N.* Domine, misericordia tua, et omnes iniquitates ejus celeri indulgentia doleat. Per, etc.

“Oremus. Exaudi, Domine, preces nostras et confitentium tibi parce peccatis ut quos conscientiae reatus accusat, indulgentia tuae pietatis absolvat.

“(Et caeteras, si tempus habueris sicut in sacramentario continentur. Si tibi non vacat, istae sufficiant. Et si homo ingeniosus est, da ei consilium ut veniat tempore statuto ad te aut ad alium sacerdotem in coena Domini et *reconcilietur sicut in sacramentario continetur*. Quicquid manens in corpore consecutus non fuerit hoc est *reconciliatione*, exutus carne consequi non poterit. Si vero minus intelligens fuerit, quidquid ipse non intelligit in uno statu reconciliare, potes eum ita dicendo:)

“Oremus. Praesta, quaesumus Domine, dignum poenitentiae fructum huic famulo ut ecclesiae tuae sanctae a cujus integritate deviarat peccando, admissorum veniam consequendo reddatur innocens. Per Dominum.

“(Si infirmus est homo, statim reconciliare eum debes.)”

Thus terminates this curious fragment of the ritual observances of our early Church. Another Irish manuscript of the same library in Basle contains a long penitential prayer, the language of which has a striking resemblance with the prayers of St. Colgu [pg 481] and Aileran, already published in the early numbers of the *Record*. It thus begins:

“De conscientiae reatu ante Altare,

“Domine Deus omnipotens, ego humiliter te adoro,

“Tu es Rex Regum et Dominus Dominantium,

“Tu es arbiter omnis saeculi,

“Tu es redemptor animarum,

“Tu es liberator credentium,

“Tu es spes laborantium,

“Tu es paraclitus dolentium,

“Tu es via errantium,

“Tu es magister gentium,

“Tu es creator omnium,

“Tu es amator omnis boni,

“Tu es princeps omnium virtutum,

“Tu es amator virginum,

“Tu es fons sapientium,

“Tu es fides credentium,

“Tu es lux lucis,

“Tu es fons sanctitatis,

“Tu es gloria Dei Patris in excelsis,

“Tu sedes ad dexteram Dei Patris,

“In alto throno regnans in saecula.

“Ego te peto ut des mihi remissionem omnium peccatorum meorum, Deus meus Jesu Christe.

“Tu es qui neminem vis perire sed omnes vis salvos fieri et ad agnitionem veritatis venire.

“Tu es qui ore tuo sancto et casto dixisti: in quacumque die conversus fuerit peccator, vita vivet et non morietur.

“Ego revertor ad Te....

“Ideo confiteor tibi Domine Deus meus, qui solus sine peccato es: et obsecro te, Jesu Christe, Deus misericordiarum per passionem et per effusionem sanguinis tui, atque per signum ligni salutiferi crucis tuae ut concedas mihi remissionem omnium peccatorum meorum, non secundum meum meritum, sed secundum magnam misericordiam tuam”.

The “Rule for the Celi-De”, composed by St. Maelruan about the year 780, reckons “*the divulging of confession*, so as to say, this is what the man did”, as so heinous a crime “that it is not penanced in the land of Erinn”.²³ It also contains several regulations connected with the sacrament of penance. Thus, on the eve of the chief festivals, all feasting is prohibited, “because of going under the hand to-morrow”. To which words Dr. Reeves adds the following note: “The priest raises his hand in the absolution, whence the modern expression *going under the hand of the priest* denotes going to confession” (pag. 202). Subsequently the Rule enacts:

[pg 482]

“When they do not go to hand (*i.e.* to confession) on Sunday, they go on the Thursday after; it would be too long to wait till the Sunday following for the person who habitually goes to hand every Sunday, because these two days are always special with them at Mass.

“It is not necessary to delay minute confessions of thoughts and idle notions, and abuse and anger, till Sunday, but to confess them immediately as they occur.

“He who makes his confession to a *soul-friend*, if he performs the penance according to his directions, need not confess them to another *soul-friend*, but only what has subsequently occurred. Frequent confession is not profitable when the transgressions are frequent too”.

Some instructions are also given for the guidance of the confessor:

“Difficult, indeed, is the duty of the *soul-friend*, because if he gives the proper remedy, it is oftener violated than observed; but if the soul-friend does not give it, its liability falls upon himself; because several are satisfied with making the confession without doing the penance; but it is better to proclaim their welfare to them, though they do not respond to the penance enjoined by the confessor. Another soul-friend may be gone to, if necessary, after the permission of the first soul-friend.

“It is right to refuse the confession of a person who does not perform penance according to the soul-friend, unless there happens to be a soul-friend near, whom he considers more learned in rules, in the ways of the Scripture, and in the practices of the saints. Let him heed what he receives from the learned soul-friend whom he first met, to whomsoever he may reveal his confession each time, and let penance be enjoined him according to the rules of frequent confession”.

In fine, it is also decreed that the bishop “who confers noble orders upon any one who is not able to instruct in religion and reading, and soul-friendship, and who has not a knowledge of laws and rules, and of the proper remedy for all sins in general, is an enemy to God and man; for that

bishop has offered an insult to Christ and His Church, and hence shall do penance for six years, and he shall pay seven *cumhals* in gold as a penalty to God.²⁴”

The Rule of St. Carthage (who was familiarly called *Mochuda*) has already been published in full in the December and January numbers of the *Record*. Frequent mention is made in it of the holy sacrament of penance, and as St. Carthage died before the year 640, we are thus enabled to trace back the Catholic tenets of our fathers even to the beginning of the seventh [pg 483] century. At page 116, among *the duties of a priest* is commemorated:

“If you go to give communion
At the awful point of death,
You must receive confession
Without shame, without reserve.
Let him receive your sacrament
If his body bewails.
The penitence is not worthy
Which turns not from evil....
If you be anybody's soul-friend,
His soul thou shalt not sell;
Thou shalt not be a blind man leading the blind;
Thou shalt not allow him to fall into neglect;
Let them give thee their confession
Candidly and devoutly”.

Whilst confession was thus enjoined on the faithful, it was not less necessary for the religious themselves:

“When you come unto the mass—
It is a noble office—
Let there be penitence of heart, shedding of tears,
And throwing up of the hands, ...
With confession of vices,
When you come to receive”.

And again, when laying down special rules for monks, St. Carthage commands them to exercise modesty and meekness:

“With inculcation of every truth;
With denunciation of every wickedness;
With perfect frequent confessions,
Under the directions of a holy abbot”.²⁵

The testimony of these religious rules is of great importance: they not only convey to us the teaching of individuals remarkable for their piety and learning, but they moreover record for our instruction those disciplinary enactments which received the solemn sanction of the greatest saints of our ancient Church, and which guided in the paths of perfection thousands of our countrymen whose virtues and miracles won for our island a widespread fame for sanctity throughout the sixth and succeeding centuries.

We may now refer to facts connected with these sainted fathers of our Church which throw much light on the practice of confession, from the earliest period of faith in our island. Thus, of St. Adamnan we read that, being troubled about some sin of his early youth “he resorted to a priest from whom he hoped to learn the way of salvation, and confessing his fault [pg 484] prayed for such counsel as might enable him to flee from the avenging anger of God”.²⁶

In the life of St. Columba, too, it is recorded that one day an Irishman from Connaught, by name Ildran, landed on the beach of Iona and proceeded to the guest-house of the monastery. On the following morning he made known to the saint the object of his journey, viz.: to do penance for his sins, and “at the same hour he confessed all his sins and promised to fulfil the laws of penance”.²⁷ On another occasion St. Columba was visited by a person named Fiachna, who, being touched with remorse for some crime, fell at the saint's feet and “confessed his sins before all that were there present”, whereupon the holy man weeping embraced him, and said, “Arise, my son, and be comforted; thy sins are forgiven thee, for, as it is written, the contrite and humble heart God doth not despise”.²⁸

In the case of a chieftain named Suibhne, it is mentioned that, though truly penitent, he was ordered by St. Pulcherius to confess his sins.²⁹ We find also St. Maidoc of Ferns earnestly soliciting to have a wise confessor divinely destined for his guidance. St. Molua of Clonfert-molua was the person chosen by him, and hence, amongst other titles given to this last-named saint, is “Father of the Confession of Maidoc”.³⁰ Again, in the life of St. Finbar it is mentioned that a young man from Leinster went to Iona to be guided by Columba: being obliged soon after to return to his native country, he thus affectionately addressed the holy abbot: “O sancte Dei! quomodo in patria mea vivam et tibi confitear peccata mea?”³¹

In the *Martyrology of Donegal*, St. Meallan of Loch Oirbsen, in Connaught, is styled the *Anmehara* of St. Furse, who since the middle of the seventh century is venerated as patron of Peronne in France (pag. 40, I.A.S., 1865). In the *Felire* of Aenghus, St. Donnan of Eigg is also said to have gone to St. Columcille “to make him his soul's friend” (Reeves' *Columba*, p. 305). This title of *Anmchara* is given to the divine Redeemer himself by St. Aileran, in the beautiful prayer printed in the *Record*, [pg 485] pag. 64, and, as we have already said, was the name given by the faithful in our early Church to those who in the Latin records are styled *Confessarii*, or *Patres Confessionis*. The *Book of Fenagh* in one of its most ancient records states, that “Columba plus venit ad S. Kilianum et ei confessus est peccata sua” (I.A.S. *Miscellany*, vol. i., pag. 118). Of St. Finbarr it is also recorded that, on the death of his spiritual director, he went to St. Olan to make him *patrem confessionis suae*, or at least to be directed by him as to the person whom he should select; and the legend adds that St. Olan replied: “Christ Himself will be your confessor, and He will receive your hand”; meaning, probably, that the hour of his death was come, for the next fact mentioned in St. Finbarr's life is his happy passage to eternity (*Life of St. Finbarr*, edited by R. Caulfield. London, 1864, pag. 21).

Probus, in the life of our great Apostle (chap. 20), mentions that one of the chief petitions which he made to God, during the time of his penitential retirement on Croaghpatrick, was: “Ut unusquisque homo fidelis Hibernorum per poenitentiam et confessionem Deo satisfaciens licet in extremo vitae suae spatio, ab ipso elementer suscipiatur”. It was to become sharer of this great privilege that St. Cormac, Bishop and King of Cashel,

baying foretold his death, summoned to him St. Macsuach, Abbot of Castledermot, to whom he made his confession, and received from his hands the holy sacrament of the Eucharist. (I.A.S. 1860. *Annals*, pag. 203).

The confession even of venial faults was especially dwelt upon by St. Molua. One of his religious was negligent on this head, and St. Molua took occasion to correct him by his own example. As they were journeying together on a certain day, St. Molua said to him: “Peccavi vere hodie quia confessionem alicui seniori non feci de his quae egi hodie: me igitur hic sustine modicum donec vadam illuc et confitear”. The religious was struck with terror, and asked “would it not suffice to confess these sins to God alone?” but the saint replied that unless we confess even our venial transgressions, we can only obtain pardon for them by severe penitential deeds here and hereafter, and added the well-known illustration: “Sicut pavementum domus scopâ quotidie tergitur, ita anima quotidianâ confessione”. The ancient life concludes; “Hoc audiens monachus a suo sancto Abbate, promisit confiteri sua offendicula; et confitebatur fideliter, et sanatus est ille frater a sua praeterita audacia” (*Vita ex Vet. Cod. Armac.*, edited by Fleming, cap. 32.)

There is only one document to which the enemies of our holy faith can appeal as evidencing a disregard for the sacrament of penance in our early Church: it is a letter of Alcuin, addressed, in the text of Canisius, *dilectissimis viris fratribus et patribus* [pg 486] *in provincia Scotorum*, in which he mentions the rumour which had reached him, that the laity had refused “confessionem sacerdotibus dare”. Here (writes Dean Murray) is a clear rejection of Popery. However, antiquarians have long since decided that this text has no reference to sacramental confession (see Lanigan, iv. 67): and as the good Protestant dean had given his citation from Usher, he should have added that in Usher's opinion the title of this letter of Alcuin was erroneous, and that it was addressed to some faithful quite distinct from our old Celtic forefathers. This opinion no longer admits of any doubt. Canisius himself remarked “that in the MS. from which he published this letter, it was addressed *de dilectissimis, etc. in provincia Gothorum*”, and he merely substituted the word *Scotorum*, as a conjecture, not knowing that there were any people in the days of Alcuin who still retained the name of *Gothic*. Later discoveries, however, have proved that the very province of

Languedoc, in which territory Alcuin lived for a long time, was designated by this name. The learned Quercetanus discovered a letter of Alcuin himself (ep. 99), addressed to the faithful “*in diversis Gothiae partibus*”; and Baluzius, in his *Miscellanea* (i. 377), published another letter of the same Alcuin, “*iis qui sunt in Gothiae partibus*”. The errors of Felix Urgellitanus, which are here referred to, fix more and more the district to which this letter was addressed; for whilst they had begun to creep in amongst the faithful of France, they were wholly unheard of in the Island of Saints.

Richard Fitz-Ralph, Archbishop Of Armagh.

“Many a mile have I gone, and many did I walk,
But never saw a holier man than Richard of Dundalk”.

*Old Couplet.*³²

§ I. Introduction.

In all the habits of social life many of the early English settlers in Ireland soon became more Irish than the Irish themselves. In the vigorous tenacity of their attachment to the Catholic religion some of these families have ever remained as Irish as the Irish themselves. Having made our people their people, they became sharers in our grace of faith, so as to keep ever since our God their God. To the Talbots and the Plunkets we owe two [pg 487] great archbishops, whose figures stand out prominently even among the illustrious band of prelates who fought the good fight in the days of the persecutors. And as our Church reckons Anglo-Irish bishops among her martyrs, so among her doctors who guarded and enriched the sacred deposit of faith we may count Anglo-Irish prelates equally illustrious: and of these the subject of the present notice offers a distinguished example. A variety of great qualities, rarely united in one individual, gives a singular attractiveness to the history of Richard Fitz-Ralph, Archbishop of Armagh. Extraordinary holiness of life—of which proof remains not only in the popular couplet at the head of this paper, and in the appellation of St. Richard of Dundalk, by which he was known for centuries, but in the stronger evidence of a Pontifical commission issued by Boniface IX. to examine into his miracles with a view to his canonization;—rare intellectual power exhibited in every branch of theology—erudition both various and profound—eloquence of a high order, to which his sermons still extant bear testimony; all these are qualities which, especially when exercised under the trying vicissitudes of a great controversy within the Church, could not fail to constitute a remarkable career. Of this career we now propose to lay before our readers an outline as perfect as the materials within our reach will allow us to sketch. We do so with the hope that others, in whom better skill is backed by richer materials, may be led to supplement from their store our slender contribution to the history of an illustrious successor of St. Patrick.

§ II. The Fitz-Ralph Family: Richard's Parentage.

Ralph, founder of the Fitz-Ralph family, held forty-nine lordships in England in the reign of William the Conqueror. From this stem various branches issued, and several families of Fitz-Ralphs were to be found in the twelfth and thirteenth centuries. To which of these Richard belongs is a matter of uncertainty. Prince, in his anxiety to enrol him among the worthies of Devonshire, refers him to the Fitz-Ralphs of Widecomb in the Moor, who, about the time of Edward I., changed their names and residence, henceforth calling themselves Stillingford, from their new abode near Exeter. But this is mere guess work. It is far more probable, in our opinion, that he belonged to the Derbyshire Fitz-Ralphs, of which family the Frechevilles and Musards of Staveley³³ became in after times the representatives. Our reasons are these. Ralph (Musard) Baron Staveley, a direct descendant of Ralph, the founder of the family, had a daughter Margaret, who, on his death, became co-heir with her brother [pg 488] Nicholas and her sister Isabella. Margaret married an Irishman, named in the pedigree Joannes de Hibernia, and died in the year 1308. Three children were born of this marriage—John de Hibernia, Ralph, and Alicia. Thus, we actually have the heir of the Fitz-Ralphs born of an Irish father. As his mother's heir John de Hibernia was owner of the third part of the manor of Staveley, and this property he gave and granted to Ralph de Frecheville, The evidence taken at an inquisition held at Staveley, in 1316, asserts that the said John “had no other lands in England”. This would lead us to conjecture that he had lands in Ireland, and after this time the pedigree no longer adds the words *de Hibernia* to any of the Fitz-Ralphs. Now, it is certain that Richard must have been born about this time; and although the precise year of his birth is not known, the date of his promotion to Armagh would allow him to have been the son of this John, or of his brother Ralph. But, setting conjecture aside, one thing is proved beyond a doubt, viz., that about the time of Richard's birth the Fitz-Ralphs of Staveley had a close connection with Ireland.

§ III. His Birthplace.

An almost universal tradition fixes his birthplace at Dundalk. According to Wadding, the tradition was, that his parents came to Dundalk from the well known territory in the north of Ireland, called *Ruta*, or the Route. Wood states that almost all writers—*auctores pene omnes*—make him an Irishman. This tradition is also clearly expressed in the appellation of Richard of Dundalk, by which he was universally known. It was the custom of the age to designate men by the name of their native place. Of this we have an excellent example in the name of John Baconthorpius, or of Baconthorpe, who, as we shall see, was Fitz-Ralph's professor at Oxford. Cotton, in his *Fasti*, tells us that “it has been contended, with some appearance of truth, that this prelate was born in England”. He here alludes to the opinion maintained by Rev. John Prince,³⁴ who considers it probable that our prelate was born in Devonshire, adding, “some tell us, that he was an Irishman, and born in the town of Dundalk in that kingdom, and hence called by the name of Richard of Dundalk. Whereas, it is possible he might be so denominated, not from his birth, but from his long residence, or his doing some eminent exploit there, or from some other like occasion there. Others say he was an Englishman, which is not improbable, for these reasons: that he had his education at Oxford; that he was chosen commissary of that university; that he was made archdeacon of Lichfield; and that he was encouraged against the friars by English bishops”.

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These are the only arguments alleged to prove that Archbishop Fitz-Ralph was born in England. They are of no weight whatever when compared with the mass of testimony on the other side. 1.—The name of Richard of Dundalk could not have arisen from the primate's long residence in that town, for he resided in his diocese only for about nine years, and certainly did not spend all his time in Dundalk. 2.—Nor is it told in history that he performed any eminent exploit here. 3.—It does not make against the Irish

origin of Archbishop Fitz-Ralph that he had his education at Oxford. It is well known that at the beginning of the fourteenth century there were very many Irishmen at Oxford. Bale gives the names of several most distinguished Irishmen who flourished there at that period—in 1310, Malachias Minorita; in 1320, David O'Buge of Kildare; in 1330, Gilbert Urgalius, who, *consueto Hibernorum hominum more*, went to Oxford after completing his rudimentary studies. Besides, among the *nations* whose contests in the thirteenth and fourteenth centuries so often made Oxford anything but a quiet abode of learning, the Irish had their place and generally went with the Southernmen. And the Archbishop himself, in his discourse at Avignon, relates how he had sent to Oxford four priests of the diocese of Armagh. 4.—That the appointment of Richard as chancellor or vice-chancellor of Oxford does not necessarily suppose him to have been an Englishman, will appear from what we have to say farther on concerning this office. 5—Nor was it strange that an Irish ecclesiastic should hold benefices in England. Clement VI., in 1351, granted to John de Briane, Dean of St. Patrick's at Dublin, who held at the same time the parish of Hatfield in Lincoln, permission to retain his benefices during his five years' course at a University.³⁵

Summing up the evidence, we have, on the one hand, the almost universal tradition that our prelate was born in Dundalk; we have an established connexion between the Derbyshire Fitz-Ralphs and Ireland about the time of his birth. On the other hand, against his Irish origin, we have no argument stronger than mere probabilities, which, when examined, are found to have no substance. We conclude, therefore, that Richard Fitz-Ralph was born in Dundalk. This conclusion receives some confirmation from a narrative in Fox,³⁶ where we are told that a copy of the entire Bible, translated into Irish by Archbishop Fitz-Ralph, was found, many years after his death, in the walls of his cathedral. Now, if this story be true, and it is indirectly confirmed by Usher, it is plain that the Archbishop must have been born in Ireland. It is hard to believe that nine years, [pg 490] broken as they were by provincial visitations and other labours, would have been sufficient to make an English prelate master of a language so difficult as the Irish, and that to the degree of perfection requisite for a translation of the sacred text.

§ IV. His Studies And University Career.

Richard Fitz-Ralph went to Oxford, and was entered of Balliol College (then recently founded), where he remained until he had taken his degree of Master of Arts. The statutes in force at that time required him to leave Balliol. As soon as he received his degree in Arts, he accordingly passed to what is now known as University College, but which after 1332 was called *Magna Aula Universitatis*, and which owed its origin to the liberality of William de Durham, who dying in 1249, bequeathed a sum of money for the benefit of ten or twelve poor masters. By a decision of congregation in 1280, four masters, “whoever might be considered fittest for promotion in Holy Church”, were to be chosen to enjoy these funds, each master being entitled to fifty shillings sterling yearly for his maintenance. The same document enjoins that the abovementioned masters, living together, shall attend lectures on theology, and shall be able, at the same time, to hear lectures on the decrees and decretals. As to their way of living and learning, they shall behave as they are directed by some fit and experienced men appointed by the Chancellor.^{[37](#)}

His residence at Balliol gave him special opportunities to become proficient in arts. The college had been endowed to enable sixteen scholars to study in arts, each scholar receiving a yearly revenue of twenty-seven marks. His residence in University College enabled him to cultivate theology. Thus all the materials of knowledge then existing were brought within his reach. At that date the course of studies had changed a good deal from the ancient narrow limits of the Trivium^{[38](#)} and Quadrivium.^{[39](#)} Out of the logic of the Trivium the new philosophy was developed, and the sciences of the Quadrivium became mere preparatory studies to the *Facultas Artium*.^{[40](#)} It is mentioned by Tanner and others, that Richard Fitz-Ralph attended the theological lectures of the famous Carmelite John Baconthorpe. This remarkable man was one of the most illustrious scholars of the day, and exercised a powerful influence on the mind of his pupil. It has been

observed, that when the latter had become Archbishop of Armagh, and had entered upon his controversy with the friars, he ever showed a marked affection for the Carmelites.

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The early half of the fourteenth century was a season of much agitation in philosophical and theological opinions. The ancient struggle between the Nominalists and the Realists entered at this time upon a new phase. The Realism of St. Thomas of Aquin was opposed by the Nominalism of Occam, and Fitz-Ralph found Oxford still agitated by the controversies that master had excited. The Franciscans were generally Nominalists; the secular clergy, as a body, were Realists. The entire university was divided into two opposite camps. The “Northern men” declared for Realism, the “Southern men” for Nominalism.⁴¹ Fitz-Ralph became a leading Realist, and the marked divergence between his views and those of the Franciscans was probably not without its influence on the controversy to which hereafter we shall have occasion to refer.

How deep and how extensive were the studies of Fitz-Ralph shall best be learned from the list of his works at the conclusion of this notice. It will be enough for our present purpose to state here, that his labours cover almost the entire field of Catholic controversy with the Greeks and Armenians, as well as (by anticipation) with the Reformers. A remarkable element in his writings, and one the presence of which reveals the form of scepticism current in his age, is the contribution he has made to the literature of the Christian Demonstration. He defends the Christian religion against the Jews by contrasting the sacraments and ceremonies of the New Law with those of the Jewish dispensation. This line of defence was called for by the altered method of attack which the Jews about the twelfth century began to employ against the Church. In the early ages the controversy turned upon the question whether our Lord was the Messiah. In the middle ages they had recourse to the scriptural defence of their own position, and calumnious attacks on Christianity. It is not strange that he should have combated Mahometanism. It should be borne in mind that the age of Frederic II. had witnessed the birth of a strange admiration for Mahometan literature; that Pope Gregory IX. had fought against this novel danger; that against the Arabian Averroes and his philosophy St. Thomas of Aquin himself had

entered the lists. It is not surprising therefore that the archbishop's zeal urged him to provide a remedy for the evil by proving that the Saracenic law itself confirmed the authority of the books of the Old and New Testament.

Before 1333 he proceeded to his degree of Doctor of Theology.

§ V. His Preferments In England.

Ware⁴² declares that Dr. Fitz-Ralph was made Chancellor of [pg 492] Oxford University in 1333. On the other hand, Wood asserts in his history that no record of this chancellorship exists either in the University or the Episcopal archives. However, the same Wood admits him to have been Commissarius of the university in that year, or, as we may describe it, vice-chancellor. Is there any way by which these different statements may be reconciled? It appears to us that an attentive consideration of the various phases through which the office of chancellor of Oxford has passed will supply a very probable solution of the difficulty.

First of all, we must bear in mind that Oxford was not at that time the seat of a bishop, but was included within the diocese of Lincoln. Next, we should consider that even during the course of the fourteenth century the chancellor was an episcopal officer, not an academical one; he represented the ordinary of the diocese, and from him drew all his jurisdiction and authority. As the university grew in importance and extent, the position of the chancellor, as a power extern to the university, became untenable, and by degrees, the nomination to the office passed from the hands of the bishop to those of the academicians.⁴³ For a time the bishop struggled to retain at least the right of confirming the election, but in the course of the fourteenth century even this claim was abandoned. The period 1300-1350 forms, therefore, a peculiar epoch in the history of the Oxford chancellors, marking as it does the transition period between the chancellors who were episcopal officers, and the chancellors elected by and out of the university. Now this transition was not effected suddenly, but almost by way of compromise: there was no sharp separation between the two classes of chancellors; the one gradually merged into the other. We should therefore expect to find some confusion in the list of chancellors; the bishop's chancellor being considered as the legitimate chancellor by those who sided with the bishop, whereas the academicians would naturally look up to their own nominee.

Now it is quite certain that Richard Fitz-Ralph, master of theology, was appointed Chancellor of Lincoln on the 6th of July, 1333, for the appointment is entered under that date on the register of Bishop Burghers. We may conclude, therefore, either that as Chancellor of Lincoln he was Chancellor of the University, as the episcopal officers before him had been, or that his appointment having fallen upon a time of some dispute about the nomination of the chancellor, he was styled *commissarius* only, or that the story of his Oxford chancellorship took its rise from the fact that he was chancellor of the bishop in whose diocese Oxford was situated. According to some authors, he was also Archdeacon of Chester. But he was certainly Dean of Lichfield, at least from 1337, and held this [pg 493] office until his appointment to Armagh. Wood relates that shortly before his own time the first window on the northern side of the choir of Lichfield cathedral contained a picture of Richard Fitz-Ralph clothed in his sacerdotal vestments, and above the following inscription: *Richardus Radulphi filius, Armachanus, Hujus Ecclesiae Decanus.*

(TO BE CONTINUED.)

Purgatory Of St. Patrick In Lough Derg.

As at this season many pious Christians visit the Purgatory of St. Patrick in Lough Derg, for the performance of penitential works, we have been requested to supply, from authentic sources, a history of that pilgrimage. In compliance with this request we give the following account of it, extracted from Dr. Moran's *History of the Archbishops Of Dublin*, where he treats of Dr. Fleming.⁴⁴ That Archbishop writing on the 20th of August, 1625, to the Internuncio in Bruxelles, makes the following statement:

“The pious and innumerable pilgrimages of the faithful this year are a pledge of great fervour; for, like bees to the beehive, so do they daily flock in such

numbers from every corner of the kingdom, for penitential purposes, to a certain island, which is called the Purgatory of St. Patrick, and which is situated in the centre of a lake, that many have been obliged to return without satisfying their pious desire, there being no room for landing on the island. This pilgrimage, though, through the bitter persecutions of heresy, it has been almost abandoned for many years, was once so celebrated throughout the Christian world, that many from the most distant parts even of the continent visited it in a spirit of devotion. The manner of performing the pilgrimage as it is now observed from ancient tradition, is as follows:—Each person, from the day he arrives in the island till the tenth following day, never departs from it. All this time is, without intermission, devoted to fasting, watching, and prayer. If they wish to give rest to their body they must sleep on the bare ground, and for the most part under the broad canopy of heaven. They receive but one refection, and that consists of bread and water. It is incredible what severe austerities and bodily mortifications females, as well as men, and persons of every age and of every condition, endure, whilst they perform this penitential course; and during twenty-four hours they are shut up in certain caves, like unto prisons, where they pass the whole day and night entirely absorbed in prayer, and receiving nothing to eat or to drink.

“I have thought it well to mention this fact, for, I am sure, your excellency will be rejoiced to see that the natives of this island, by this so great and so unparalleled an impetus of devotion, seek to appease [pg 494]the anger of God; and we may confidently hope, that by their fervour He will be appeased, who listens to the prayers of those who have recourse to Him in their afflictions.”

The contemporary, Messingham, describes the course of penance performed in the island somewhat more in detail than has been already given in the letter of Dr. Fleming. “During the nine days of the pilgrimage”, he says, “a rigorous fast was observed on oaten bread and the water of the lake. The pilgrim was first conducted barefooted to the church of St. Patrick, around which he moved on his knees seven times inside, and seven times outside, repeating all the while stated prayers of the Church. He was then conducted to the seven places of station, known as *lecti pænosi*, which were formerly small churches, or sanctuaries, dedicated to various saints; and at each of these he repeated the visit as above. The next station was around a cross in the cemetery, and subsequently at another cross that was fixed in a mound of

stones. Thence he proceeded, *over a rough and rocky path*, to a spot on the border of the lake, to which tradition pointed as the place on which St. Patrick had knelt in prayer. Here, also, certain prayers were appointed to be recited. All this pilgrimage and prayer was repeated three times each day—morning, noon, and evening—during the first seven days; on the eighth day it was repeated six times; confession and communion followed on the morning of the ninth day; and then the pilgrims entered the cave, where twenty-four hours were devoted to fasting and meditation. Any that choose not to enter the cave, passed these twenty-four hours in solitude at one of the former stations”.⁴⁵ The seven *lecti pænosi* were dedicated to SS. Patrick, Brigid, Columba, Brendan, Molaisre, Catherine, and Dabeoc, who was the patron of the place. During Catholic times there was an elegant church in the centre of the cemetery, and, besides other relics, it possessed some of our glorious apostle. This church, with the seven cells, or smaller churches, was still standing at the time of Peter Lombard, who adds, that “the English deputy did not dare to prevent the pilgrimage or profane the place”.⁴⁶ He also describes the cave as “situated a few paces to the north of the church, being a narrow building, roofed with stone, which could contain twelve, or, at most, fourteen persons, kneeling two and two.”⁴⁷ There was one small window, near which those were placed who were bound to read the breviary”.

“This solitary island was looked on as a place which had been [pg 495]chosen by saint Patrick for retreat and silent prayer, and for exercising those deeds of penance for which his whole life was so remarkable. Hence it derived its name of Purgatory, or place of Penance, of St. Patrick.⁴⁸ But whilst it was thus for the inhabitants of Ireland a chosen retreat of prayer and penance, its fame on the continent assumed another form. With the troubadours it became a favourite theme. Calderon immortalized it in Spanish; in Italy, it attracted the attention of Dante and Ariosto; and many popular tales about St. Patrick's Purgatory are still extant in French and Portuguese. It thus became a matter of romance; and poetical imagination conducted the penitents who visited the Island of Lough Derg, at first to the regions of Purgatory, and subsequently to the abodes of the blessed or of the damned.

“On the dawn of the so-called Reformation, Protestant writers seized on these poetic tales as if they were matters of sober fact, and availed themselves of the fictions of romance to cast ridicule on the practices of Catholic piety and

devotion. For some time, indeed, they did not dare to offer violence to the pilgrims, who hastened thither with unabated fervour. During the reign of James I., however, the chapels or oratories on the island were demolished; but this did not satisfy the fury with which the enemies of the Catholic faith assailed its sanctuaries and shrines. Enraged at the numbers who, despite their threats, continued to flock to this penitential retreat, the lords justices, in 1632, made a last effort to desecrate 'the holy island'. After publicly announcing that, in the opinion of the Papists, there was a passage from this island to the other world, and an entrance to the realms of Purgatory, they gave orders to have the whole island dug up, and that especially no portion of the cave should remain undestroyed; and thus, says Dr. Mant, was made known 'the imposition of the Irish clergy'. But we should much rather say, thus did the predecessors of Dr. Mant reveal to the world the blindness of their bigotry, and afford a new instance of the frenetical fury, by which alone they were guided, in upturning the sanctuaries of Catholic devotion. Borlase, in his reduction of Ireland,⁴⁹ mentions this sacrilegious act, and adds, that 'St. Patrick's Purgatory was discovered to be a mere illusion, a little cell hewn out of a rock, no confines of Purgatory or Hell'.⁵⁰ Boate, too, in his *Natural History* (p. 44), gives some further particulars; as he states that it was on the 13th of September, 1632, that the order of the lords justices was carried into execution, and that the religious who had it in charge were driven from the island, their monasteries being demolished, and the [pg 496]cell itself broken open; 'in which state', he adds (writing in 1660), 'it hath lain ever since'.

"In the Antistitis Icon, or Sketch of the Life of Dr. Kirwan, bishop of Killala, written by John Lynch; the learned archdeacon of Tuam, and first printed in 1669,⁵¹ we have a faithful description of the penitential severities of this place of pilgrimage, and of the true motives which impelled the fervent faithful to flock thither in such numbers:—

" 'That he (Dr. Kirwan) might not be wanting in any species of piety, he revered in his soul the custom of undertaking pilgrimages. Nor was he satisfied with visiting such places in Connaught as were consecrated by the sojourn of the saints, and, above all, the rugged mountain called *Cruagh Padrick*, which he was wont to frequent, often ascending its steep sides, a thousand paces in height, and there staying, according to usage, on the very summit, which is covered with large stones, and creeping on bended knees

over the rough rock fragments, which struck one with horror, not to speak of the danger of yawning chasms and precipices; but often, too, did he go into Ulster, to the far-famed *Purgatory of St. Patrick*, in which the pilgrims are wont to abstain from meat for nine days, using no food, save a little bread, and water from the lake. During one of the nine days, they are shut up in the dismal darkness of a cavern, and, therein fasting, partake of nothing save a little water, to moisten their throats when parched with thirst. At noontide and evening, they go on bended knees over paths beaten by the feet of saints, and strewn with sharp stones. In other quarters, they walk barefooted over rugged ways, in the olden time frequented by holy men, to satisfy for their transgressions. Sometimes walking and sometimes on their knees, they advance to a considerable distance into the sea. Thus do they spend the day, pouring out their prayers to God, and listening to holy discourses; nor in this sacred place is there to be seen or heard anything scurrilous or ludicrous. When night comes on, they lie down, not to enjoy repose, but to snatch a few moments' sleep; their beds are of straw, nor do they use any pillow but their garments. Thrice each day did Francis, with the other pilgrims, punctually perform these duties, and, in addition, he diligently applied himself to hearing confessions and preaching sermons'.⁵²

“The nuncio Rinuccini, in the report of his nunciatura, made to the Holy See on his return to home in 1649, mentions how anxiously he had desired to snatch from the hands of the heretics the *far-famed Purgatory of St. Patrick*; and he adds: ‘The devotions of this deep cave are of great antiquity, though their first origin is uncertain. It is agreed, that the saint chose that spot for his holy retreats; and the visions⁵³ with which he was there favoured by God, were well [pg 497]known, and approved of by succeeding generations. At present, the fury of the Calvinists has levelled everything with the ground, and filled up the cave; and as thus they destroyed every vestige of the spot, so do they seek to cancel every trace of its memory. It seemed to me that my mission from Rome should embrace this, too, as one of its special objects, and I would have been, in part, content, could I have re-planted the cross on that island. But I was not blessed with the fulfilment of this design’.⁵⁴

“Despite, however, all the efforts of the Puritans, it continued to be a place of resort for pilgrims from every quarter of Ireland; so much so, that in the second year of queen Anne, the parliament once more enacted, ‘that, whereas the superstitions of popery are greatly increased and upheld by the pretended

sanctity of places, especially of a place called St. Patrick's Purgatory in the county of Donegal, and of wells to which pilgrimages are made by vast numbers, ... be it enacted, that all such meetings be deemed riots and unlawful assemblies, and all sheriffs, etc., are hereby required to be diligent in executing the laws against all offenders’.

“In the year 1714, Dr. Hugh M'Mahon, bishop of Clogher,⁵⁵ presented to the Sacred Congregation a Relation of the diocese entrusted to his care, and amongst other things, he details his own experience of the place of penitential resort which we have been describing. He had visited it disguised as a merchant from Dublin; for, even then, a bishop incurred great risk were he publicly recognized; and he describes in detail each particular of its penitential course. From his description we may conclude, that some changes had been introduced in its ritual since the time when Lombard and Messingham penned their commentaries. We shall give the extract in full in a note, as it has never before been published.⁵⁶

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“About forty years later, the Purgatory of St. Patrick was visited by another eminent prelate of our Irish Church, Dr. Thomas De Burgo, who, in his *Hibernia Dominicana*, has recorded his impressions on visiting that far-famed sanctuary. ‘So great’, he says, ‘are the penitential deeds performed there, that they exceed, in my opinion, those of any other pilgrimage in the universe’;⁵⁷ and he adds: ‘Non quae audivi, sed quae vidi refero; mihi enim feliciter contigit, insulam ipsam sanctissimi Patritii habitatione et miraculis consecratam, praeclarumque austeritatis primorum ecclesiae saeculorum praebentem exemplar, invisere anno 1748’.

“As regards the relations of the Holy See with this place of devotion, we learn from the Bollandists, that, in 1497, the cave was destroyed by order from Rome, in consequence of its being represented to the Pope as *an occasion of shameful avarice*, by a monk from Holland, who had visited it, attracted by its wide-spread fame, and yet saw there none of the wonderful visions which he had heard so often described.⁵⁸ The Ulster Annals also commemorate this destruction, but state that it was occasioned by its not being the true cave hallowed by St. Patrick.⁵⁹ The proper lessons for the feast of the Purgatory [pg 499]of St. Patrick were inserted in the Roman Breviary, printed at Venice in 1522, but were expunged by order of the Holy

Father, in the next edition, by the same printer, in 1524. The nature of the devotion was subsequently explained to the Holy See; and we are informed by Messingham, that indulgences were attached to its penitential exercises before the close of the sixteenth century.⁶⁰ When Dr. M'Mahon wrote his *Relatio*, the term of the indulgences granted by pope Clement X. had just expired. A little later, the cardinal archbishop of Benevento, who was subsequently raised to the papal chair as Benedict XIII., made the Purgatory of St. Patrick the theme of one of his homilies to his flock; and since that time this devotion has been ever cherished and encouraged by the sovereign pontiffs.

“In the Annals of the Four Masters, and other ancient records, mention of pilgrimages to this island seldom recurs. It was a mere matter of private devotion, and did not precisely fall within the province of history. In the sixteenth century, we learn from the Bollandists, that it was sometimes visited by 1,500 persons at the same time.⁶¹ Dr. Fleming tells us how such numbers flocked to it in 1625, that many had to return without finding room to land upon the island. Nor since then has its celebrity decreased; and we find that, before the famine years of 1847, this sanctuary was annually visited by no fewer than 10,000 pilgrims.⁶² At the present day the average number of daily pilgrims, during the *station months*, is very considerable, and the total annual number is estimated at several thousands.

“Besides the many accounts of this Purgatory, published more as matters of romance⁶³ than history, there are several valuable treatises which deserve attention. Not only Lombard and Messingham, in the works already alluded to, but the Bollandists (17 March); Dr. Lanigan (vol. iv. p. 290, seqq.); Colgan, in his *Trias Thaumaturga* (p. 27); and Feijoo, the celebrated Spanish critic, in his *Theatro Critico* (tom. vii. p. 157), give several important facts, together with many judicious remarks concerning this venerated sanctuary of Lough Derg. The valuable notes of Dr. Matthew Kelly to the first volume of *Cambrensis Eversus* (pp. 138-155), throw much light on the subject. See also, a very rare treatise, entitled, *A Brief History of St. Patrick's Purgatory*, written by the Rev. Cornelius Nary, parish priest of Michan's, and published in Dublin in 1718.”

Liturgical Questions.

We purpose in this number of the *Record* to answer a few practical questions connected with the office of the dead, which have been forwarded to us:

1. Is it proper for the president of the choir to wear the alb and cincture during the recitation of the office of the dead—the matins and lauds?
2. Should he wear stole and cope, or either?
3. Is it correct to say the Requiem aeternam after the prayer at lauds when the Mass follows?
4. is it proper for the priest who presides in the choir to perform the absolution after Mass?

1. It is not proper for the president of the choir to wear the alb and cincture at matins and lauds. There is a decree of the Sacred Congregation of Rites which appears to bear on this subject.

The question proposed was:

“Dubium LXI. Juxta Rituale, dum in officio dicuntur laudes: sacerdos cum ministris paratur ad celebrandam missam solemnem pro defuncto. Exinde autem oriuntur dubia de modo concludendi laudes: nempe 1^o Ubi sunt duo

vel plures Presbyteri, alius debetne concludere Laudes dum celebrans qui officium inchoavit paratur in sacristia? 2. Ubi unicus est Presbyter debetne iste relinquere officium Laudum sine Praeside et adire sacristiam ut paretur ad missam et deinde opportuno tempore redire in Chorum, vel ante Altare, alba, cingulo, et stola indutus ut concludat Laudes?

“Ad LXI. Affirmative ad primam partem. Quoad secundam debet concludere laudes et postea sacristiam petere ut sese vestiat pro Missae celebratione. Die 12 Augusti, 1864”.

It is evident from this decree that the vestments are not to be worn at the office of the dead, for they are not allowed even in a case which would appear one of necessity, viz.: when there is only one priest present, and when some delay must necessarily occur between the office and the mass, if the celebrant must wait to say the prayer at the end of Lauds before he puts on the vestments. If in such an extreme case, when there arises some delay between the office and mass, which is most objectionable and always to be avoided in ceremonies, the alb and cincture cannot be worn, they cannot surely be used on ordinary occasions when such necessity does not exist.

2. With regard to the second question, the Roman Ritual does not prescribe even the use of a stole or of a cope, as far as we are aware, and we think that the practice of not wearing one or the other at the office is the most correct and to be recommended, [pg 501] though we are well aware that the contrary practice is adopted by many. The Roman Ritual, treating of the procession in which the remains are carried to the church, has the following words:

“Parochus indutus superpelliceo et stola nigra vel pluvali ejusdem coloris, clerico praeferente crucem et alio aquam benedictam ad domum defuncti una cum aliis procedit”.

But these words do not apply to the office. The Caeremoniale Episcoporum, treating of the ceremony on All Souls' Day, does make mention of the stole and cope (book ii., chap. 10, n. 10):

“Haec ut dixi servantur si ipse episcopus sit in his vesperis aut matutinis officium factururus; sin minus posset manere cum cappa in choro in loco suo et Canonicus hebdomadarius paratus pluviali nigro supra Rocchetum vel cottam aut saltem stola nigra faceret aut diceret omnia praedicta”.

The words of the *Caeremoniale* gave rise to the following question proposed to the Sacred Congregation of Rites: “An in officio defunctorum celebrans inducere debeat stolam vel saltem possit, uti erui posse videtur ex Caeremoniali lib 2^o. cap. 10.

“*Resp.* Negative extra casum in caeremoniali contemplatum. 7 Septembris, 1850”.

There is another decree of the Sacred Congregation of Rites referring to this matter:—

“Dubium LVIII. An sacerdos qui juxta Rituale, superpelliceo et stola indutus praefuit clationi corporis debeat retinere stolam dum praeest matutino et Laudibus quae immediate sequuntur? Saltem si in hac Functione utatur Pluviali, quum in eo casu non possit deponere stolam quin per aliquantis Pluviale exuat?

“Ad LVIII. In utroque casu licere. Die 12 Augusti, 1864”.

We may observe that a direct answer is not given to the question, which was proposed with the view of ascertaining what should be done in two special cases, and the only answer given was “in utroque casu licere”. Hence a priest might wear the stole and cope, but should he not do so, he would not follow a course at variance with this decree. No doubt, in some rubrical works, express mention is made of the stole and cope, and still more frequently of one or the other; but the Roman Ritual, as we said, does not prescribe either at the office of the dead, and when their use is pointed out, it generally refers to the cathedral churches, where the ceremonies are carried out with greater pomp and solemnity, than in those rural churches to which our correspondent refers. We may also observe that the decree above quoted, does not contemplate the use of the stole and cope apart from the

procession. On the whole, considering the circumstances of our churches, we would in practice [pg 502] dispense with stole and cope at the office, while we would be slow to condemn the use of the cope, if such a custom existed in any church that in other respects carried out the ceremonies of the Church with accuracy and decorum. But we consider that the decree of 7th September, 1850, above quoted, clearly lays down that the stole ought not to be used, though we find it more frequently used on such occasions than the cope, on the ground, perhaps, that it is an emblem of jurisdiction in the person who presides.

3. In reply to the third question, we beg to say that the Mass should commence immediately at the end of the lauds, which terminate with the prayer, and after the prayer, the Requiem aeternam, etc., and Requiescant in pace should not be said: it is only when the ceremony concludes that these are to be said.

“In fine Laudum dicta oratione, non adduntur versus Requiem aeternam, nec Requiescant, sive sequatur Missa sive hac ommissa statim procedatur ad absolutionem, quia hi versus, qui deservunt in ultimum vale defunctis, sunt in fine precum reservandi”.⁶⁴

The prayer at the end of Lauds on such occasions should be said *cum conclusione brevi*. We give the following extracts from Cavalieri, a distinguished rubricist, who writes, in tom. 3, cap. 2, decr. 16, n. 13:—

“In Rituali oratio ponitur *cum conclusione brevi*, sed hoc ideo, quia supponit, quod non ibi terminetur officium, sed continenti filo pergatur ad exequias: quare ut ponatur concordia Ritualis inter et Breviarium, quod longiorem notat conclusionem, concludendi orationes haec erit regula; quoties una tantum dicitur oratio, et ibi terminatur officium, conclusio sit integra; brevis vero quando sequantur exequiae, seu absolutio ab tumultu, sive haec fiant praesente vel absente corpore sive diebus 3. 7. 30., anniversario, vel alio officio quolibet. Confirmatur ex Rubricis Breviarii Romani trium Ordinum S. Francisci, quae approbatae fuerunt a Pio VI. an. 1785. In die Commemor. omnium Fidelium Def. additur haec annotatio: *Conclusiones (orationum in officio pro defunct.) longiores adhibentur semper, quando unica dicitur*

oratio; nisi statim sequatur Missa de Requiem, vel absolutio ad tumulum; tunc enim dicitur conclusio brevis.

“(2) Cavalieri, *ib. n. 14.* quia Rituale, terminata oratione sub brevi conclusione, non subdit versiculos *Requiem aeternam*, sed statim transit ad Missam, et quatenus haec non sit dicenda, ad orationem *Non intres*, nec dubitamus, quod praedicti versiculi taceri debeant, quoties post Defunctorum officium sequitur Missa de requiem, aut absolutio ad tumulum. Tunc enim ex huiusmodi officiis fit unum veluti continuatum, unde versus illi, qui deservunt ad dandum ultimum vale Defunctis, sunt in fine precum reservandi. Huic doctrinae conformis [pg 503]est praescriptio Rubricarum in praedicto Breviario Fr. S. Francisci. Loco cit. dicitur: *Duo autem Versiculi (Requiem aeternam, et Requiescant) post orationem omittuntur, si statim sequatur Missa de Requiem, vel Absolutio ad tumulum*”.

With regard to the fourth question the Roman ritual is quite clear. “Finita Missa sacerdos deposita casula seu planeta et manipulo accipit pluviale nigri coloris”.... It is always laid down that the celebrant of the Mass, unless the bishop be present, performs this part of the ceremony. The *Caeremoniale Episcoporum*, cap. 37, lib. 2^o, has the following words, which we here quote:—

“Aliquo die non impedito infra octavam Defunctorum arbitrio Episcopi, Canonicus aliquis, seu dignitas Ecclesiae Cathedralis celebrabit Missam pro animabus omnium Episcoporum et Ecclesiae Cathedralis Canonorum defunctorum cum paramentis nigris et caeremoniis prout supra dictum est, cui Missae Episcopus praesens erit cum cappa et in fine si voluerit, poterit, immo debet deposita cappa et accepto pluviali absolvere, prout dicitur capite praecedenti.

“Quod si Episcopus huiusmodi Missae praesens non erit, vel absolvere nequiverit, celebrans finita Missa, accedet ad cornu Epistolae altaris, ubi in plano, deposita planeta et manipulo accipiet pluviale nigrum et stans in dicto cornu Epistolae versus ad altare expectabit finem responsorii”....

It is evident from all this what answer is to be given to the fourth question, viz.: that in all cases the celebrant, and no other priest, should give the absolution when the bishop is not present.

Notices Of Books.

Adjamenta Oratoris Sacri, seu, Divisiones, Sententiae, et Documenta de iis Christianae vitae veritatibus et officiis, quae frequentius e sacro pulpito proponenda sunt, collecta atque ordine digesta opera Francisci Xaverii Schouppe, S.J. Brussels, Goemare, pp. 543. 1865.

From the materials here collected and prepared by Father Schouppe, the preacher may build his discourse with ease and advantage. And yet, though the materials are placed ready to his hand, the work will still be all his own. The author does not undertake to supersede labour, but to lighten the preacher's fatigue by lending his friendly help. He supplies matter for the discourse, he even traces the outline of its form, and then leaves to the preacher himself the task of construction. In the opening pages he addresses himself to the question, *how is a priest, especially a young priest, to render himself a useful and even a perfect preacher of the Word of God?* In [pg 504] answer to this question, he touches in a masterly way on these two points, 1. What is a preacher of the Gospel, and what is the perfection that belongs to him? 2. By what process may a preacher attain to this perfection? Part of this process consists, of course, in the preparation of the sermon, and it is to facilitate this preparation that the work before us has been compiled. The author reduces to fifty heads the entire cycle of subjects suited for pastoral exhortation, embracing in this number whatever can serve to bring the sinner to justification, to guide him in the path of a Christian life, and to conduct him to Heaven. He gives on each of these fifty subjects a treatise which is a marvel of brevity and fulness. So judicious is the arrangement of the texts bearing on the subject; so clear and full the

statement of the case; so simple the division of the arguments, that each of these little treatises makes the reader complete master of the subject of which it treats. On the more important subjects, and on those which require more frequent handling, the author supplies many and different divisions or outlines of sermons, thus guarding against the monotony that arises when a subject is presented often under the same form. One other merit we would signalise in this work. It deals with the wants, defects, and vices of the men of our own times. The books of sermons which are to be found on the shelves of the clergy generally belong to an extinct period; the exhortations they contain are coloured by circumstances that have long ceased to exist. Modern modes of thought, modern manners, modern literature, have given rise to a peculiar class of temptations and of dangers, and as these differ quite from those of a century ago, so also do they demand peculiar treatment and special remedies.

Father Schouppe has not forgotten this, and takes care to grapple with the difficulties that beset the Christian life of the nineteenth century. Two indexes close the volume. One exhibits a general synopsis of the contents; the other refers to the various passages whence materials may be drawn for a sermon appropriate to the gospel of each Sunday and holiday in the year. Both indexes enhance the practical value of this excellent book, which we do not hesitate to call a real boon for the clergy.

The Cromwellian Settlement of Ireland. By John P. Prendergast, Esq. London: Longmans, 1865.

This is a valuable accession to Irish history. It gives an account of the cruelties practised on our people in the Cromwellian Confiscations. It confirms, from official sources, the painful details contained in Dr. Moran's lately published sketch of the persecutions of the Irish Catholics in the seventeenth century. The Irish land question cannot be well understood without the aid of Mr. Prendergast's excellent book.

Footnotes

- [1.](#) *Milton's Prose: A Lecture delivered in the Museum of Irish Industry, St. Stephen's Green, by the Right Hon. Judge Keogh:* The Irish Times, June 1, 1865.
- [2.](#) We print the words of the judge as we find them, though it seems irreverential, not to say worse, to compare a regicide, and a man who denied the divinity of Christ, to the apostle of the nations. Though Milton was gifted with the highest natural powers, yet, not having the qualities of a true Christian, he was only like sounding brass or a tinkling cymbal.
- [3.](#) *Works of Samuel Johnson:* Dublin, 1793, vol. v., p. 72.
- [4.](#) *The Works of John Milton.* London: Bickers and Bush, 1863: vol. iv. pp. 411, 412.
- [5.](#) It is entitled *A Treatise of True Religion, Heresy, Schism, Toleration, and the best means to prevent the growth of Popery.*
- [6.](#) “As for tolerating the exercise of their [the Catholic] religion, I answer, that toleration is either public or private; and the exercise of their religion, as far as it is idolatrous, can be tolerated neither way; *not publicly*, without grievous and insufferable scandal given to all conscientious beholders; *not privately*, without great offence to God, declared against all kind of idolatry, though secret”—*Milton's Works*, already quoted, vol. v. p. 413.
- [7.](#) See Bayle; *Dictionnaire Historique et Critique*: art. Milton, note o; also *Johnson's Works*, vol. v. pp. 95, 96.
- [8.](#) *Quarterly Review*, October, 1825, p. 446.
- [9.](#) *Milton's Works*, Bickers and Bush; vol. iv. p. 428.
- [10.](#) See the *Edinburgh Encyclopædia*, articles “Copernicus”, and “Gallileo”.
- [11.](#)

See *The Martyrs of Science*, by Sir David Brewster; or the *Edinburgh Review*, July, 1844, p. 173.

[12.](#) See *Martyrs of Science*; or the *Edinburgh Review*, July, 1844, p. 174.

[13.](#) It is singular that the sufferings of Irish Catholics should meet with more sympathy from an English Protestant clergyman than from an Irish Catholic lecturer. The relations between our country and “our glorious deliverer” are thus described by the Rev. Sidney Smith:—

“The war carried on in Ireland against King William cannot deserve the name of a rebellion: it was a struggle for their lawful prince, whom they had sworn to maintain, and whose zeal for the Catholic religion, whatever effect it might have produced in England, could not by them be considered as a crime. This war was terminated by the surrender of Limerick, upon conditions by which the Catholics hoped, and very rationally hoped, to secure to themselves the free enjoyment of their religion in future, and an exemption from all those civil penalties and incapacities which the reigning creed is so fond of heaping upon its subjugated rivals.

“By the various articles of this treaty, they are to enjoy such privileges in the exercise of their religion as they did enjoy in the time of Charles II.; and the king promises, upon the meeting of parliament, ‘to endeavour to procure for them such *further security* in that particular as may preserve them *from any disturbance* on account of their said religion’. They are to be restored to their estates, privileges, and immunities, as they enjoyed them in the time of Charles II. The gentlemen are to be allowed to carry arms; and no other oath is to be tendered to the Catholics who submit to King William than the oath of allegiance. These and other articles *King William ratifies for himself, his heirs and successors, as far as in him lies, and confirms the same, and every other clause and matter therein contained.*

“These articles were signed by the English general on the 3rd of October, 1691; and diffused comfort, confidence, and tranquillity among the Catholics. On the 22nd of October, the English parliament excluded Catholics from the Irish Houses of Lords and Commons, by compelling them to take the oaths of supremacy before admission.

“In 1695, the Catholics *were deprived of all means of educating their children, at home or abroad*, and of the privilege of being guardians to their own or to other persons' children. Then all the Catholics were disarmed, and then *all the priests banished*. After this (probably by way of joke) an act was passed to *confirm* the Treaty of Limerick,—the great and glorious King William totally forgetting the contract he had entered into, of recommending the religious liberties of Catholics to the attention of Parliament”—*The Works of the Reverend Sidney Smith*. London: Longman and Co., 1854, pp. 272, 273.

- [14.](#) *The Life of Milton*. By the Rev. John Mitford: prefixed to his Works. London: Bickers and Bush. Vol. i. p. cxlvi.
- [15.](#) *Ib.*, p. cxliii.
- [16.](#) Ap. Usher, *loc. cit.*, p. 47: *Villaneuva Synod. S. Patricii*, p. 3.
- [17.](#) *Poenitentiale*, can. 5.
- [18.](#) *De Arreis*, § 3 and § 4.
- [19.](#) *Poenitent.*, v. 12.
- [20.](#) *Ibid.*, ii. 16.
- [21.](#) *Poenitentiale*, can. 14 and can. 23.
- [22.](#) *Poenitentiale*, can. 30.
- [23.](#) *Curry MSS.* § 60; and Dr. Reeves on *The Culdees*, pag. 209.
- [24.](#) Reeves, *loc. cit.*, pag. 202, seqq. The *cumhal* in the Latin documents is expressed by *ancilla*. Its literal meaning is *bondmaid*, whose equivalent was reckoned at three cows. See O'Donovan, *Book of Rights*, page 139.

- [25.](#) Page 173.
- [26.](#) “Accedens ad sacerdotem a quo sibi sperabat iter salutis posse demonstrari confessus est reatum suum”, etc.—Bede, *H. Eccl.*, iv. 25.
- [27.](#) “Eadem hora omnia confessus peccata leges poenitentiae flexis genibus se impleturum promisit”—*Vita S. Columb.*, ii. 39, *edit. I.A.S.*, p. 157.
- [28.](#) *Ibid.*, p. 59. See also lib. i. cap. 17, p. 46.
- [29.](#) *Vita S. Pulcher*, *alias Mochoemogue*, who lived in the seventh century, cap. xix., ap. Colgan, p. 592: “Videns eum vir Dei visitatum verâ poenitentia, ait ei: confitere peccata tua et esto de caetero fidelis in omnibus”.
- [30.](#) See *Martyrol. of Donegal*, p. 211, and *Vita S. Maidoc*, cap. xx., and liv. ap. Colgan, p. 208, seqq. St. Dubthach of Armagh is also famous in our annals as being the “chief confessor of Ireland and Albany” (Colgan, *Tr. Thaum.*, p. 298); and St. Gormgal of Ardoilean is similarly eulogised by the Four Masters, ad. an. 1017. *Conf. Colgan, Act. SS.*, p. 141.
- [31.](#) *Vita*, cap. 22, *Tr. Colgan*, p. 353; Reeves' *Columba*, p. 213, note k.
- [32.](#) This couplet is quoted by Prince in his *Worthies of Devon* from Paul Harris, c. 5, p. 88, who thus introduces it, “of whose (Fitz-Ralph's) sanctity the common people of Ireland by ancient tradition were wont to chaunt this distich”. In the loose papers prefixed to the *Martyrology of Donegal*, the verses are quoted from Henry Harris in *Apolu*. This false reference has led Dr. Todd into a slight mistake, vide *Martyr. of Donegal*, App. to Int. p. xlii.
- [33.](#) *Collectanea Topographica et Genealogica*, vol. iv. London, 1847. Pedigree of the Frechevilles and Musards.
- [34.](#) *Danmonii Orientales Illustres, or the Worthies of Devon*.
- [35.](#) Theiner, *Monumenta*, p. 296-594.
- [36.](#) *Martyrol. Angl.*, tom. i. p. 296.
- [37.](#) Huber, *English Universities*, vol. i., p. 438, Newman's edition.

- [38.](#) Grammar, logic, and rhetoric.
- [39.](#) Arithmetic, geometry, astronomy, and music.
- [40.](#) Huber, *English Universities*, vol. i. p. 53.
- [41.](#) Huber, note xx. p. 408, vol. i.
- [42.](#) *De Presulibus Hib.*, pag. 20-21.
- [43.](#) Huber, vol. i. page 132.
- [44.](#) For this reason we have enlarged the present number by a half-sheet.—EDD. I. E. R.
- [45.](#) “Messingham, p. 95. See also Carve, who in his *Lyra* (edition of 1666), p. 112, gives a plate of the Insula Purgatorii S. Patricii; and adds:—‘Certum est magnam olim hac in peninsula apparuisse devotionem in qua etiam varios viri sancti circulos seu cavernas maceriis introrsum circumdatas condiderunt; atque in iisdem corpuscula sua jejuniis, orationibus, aliisque disciplinis assidue domantes, auxiliumque divinae gratiae sine intermissione implorantes ac insuper Deum pro communi ecclesiae bono, conservandaque inter omnes Christianos vera concordia convenienter deprecantes’.”
- [46.](#) “*Commentar.*, p. 277.”
- [47.](#) “Rothe apud Messingham states, that only nine persons were usually admitted into the cave.”
- [48.](#) “It is matter of dispute amongst our hagiologists, whether the St. Patrick, from whose deeds of penance this island acquired its fame, was our apostle, or another subsequent saint of the same name.”
- [49.](#) “*The Reduction of Ireland to the Crown of England, with the Governors*, etc., London, 1675, p. 207.”
- [50.](#) “Had he taken the trouble to open the writings of Peter Lombard or Messingham, he would have seen that the limits of the cell were well known, and that *the confines of Purgatory or Hell* existed only in the distempered imaginations of the persecutors themselves.”

- [51.](#) “This valuable work has been republished, accompanied with an elegant translation and notes, by Rev. C. P. Meehan (Dublin, 1848).”
- [52.](#) “*Ibid.*, 61-63.”
- [53.](#) “The poetical descriptions of ‘the Purgatory’ abound with fanciful visions. We shall give a real one from a MSS. Relatio of the diocese of Waterford, made by Dr. Patrick Comerford, on 16th Oct, 1632:—‘In dioecesi Corcagiensi est quidam Anglus qui (ut a multis fertur) biduum vel triduum mortuus revixit, et cum ante obitum esset Calvinista, statim atque revixit abjuravit Calvinismum et publice soepius declaravit se vidisse in inferno Lutherum et Calvinum et proinde neminem salvari posse qui eorum dogmatibus adhaereret; hinc excitati Protestantes eum in carcerem detruserunt’.”
- [54.](#) “*Nunziatura*, p. 414.”
- [55.](#) “He was appointed in 1707, bishop of Clogher, and, in 1715, was translated to Armagh. The Collections on the Church History erroneously mark his appointment to Clogher in 1708, and his translation to Armagh in 1709.”
- [56.](#) “ ‘In septentrionali plaga hujus dioecesis Clogherensis, situs est locus ille celeberrimus vulgo dictus Purgatorium S. Patricii in parva insula circumdata lacu, quo ab initio Junii usque ad finem Augusti confluunt ex omnibus regni partibus etiam remotissimis quotannis omnis aetatis et conditionis milleni viri et mulieres ibique conficiunt novenam semel in die solo pane avenaceo et aqua victitantes, ac humi cubantes nudis pedibus semper, et non raro offendiculo cruentatis: ter de die varias stationes visitant per asperum iter acutis stratum lapillis cujus magna pars aquis ultra genua excedentibus obtegatur, donec nona die, praemissa generali confessione, omnibus vitae noxis expiatis, sacro pabulo refecti ante diluculum ingrediuntur subterraneam foveam quae purgatorium dicitur, ibique viginti quatuor horis continuis semper vigiles et orantes sine ullo cibi aut potus refrigerio perseverant et recurrente eadem hora egressi sequenti die se ter immergunt algidis aquis sicque perficitur peregrinatio cui otiosi fabularum

fabricatores multa commenta addiderunt de spectris ac visionibus quae nusquam comparent nisi in vitiato cerebro comminiscuntur; tribus mensibus, quibus durat haec peregrinatio ab aurora ad meridiem celebrantur missae, excipiuntur confessiones, fitque concio bis terve de die ad populum qui uberrimis lachrymis, gemitibus aliisque poenitentiae signis cum clamore editis concionantem frequenter interruptit; tantaque misericors Dominus asperam hanc et plane austeram peregrinationem interioris gratiae suavitate accumulatur ut qui antea videbantur obdurati, vitiorum sordibus immersi acerrimos compunctionis stimulos sentiant, nec contenti semel aut iterum accedere ad insulam, reperi in dioecesi qui quatuordecim vicibus peregrinationem perfecerunt. Non leve huic devotorum fervori addidit incrementum a SS^{mo} D. N. Clemente visitantibus concessa indulgentia plenaria quae brevi expirabit et renovatione opus habet. Non absimile prodigio censeatur apud omnes quod peregrinatio haec primo loco et nominatim lege parlamentaria sub gravissimis poenis prohibita, nullam vel certe raram patiatur remoram a circumhabitantibus et alias supra modum malignis Calvinistis Scotis. Et cum ipso accederem sub nomine mercatoris Dublinensis (nam sub hujusmodi negotiatoris aut artificis involucris latere necesse habent communiter Praelati et non registrati sacerdotes), ministellus illius districtus satis humaniter me excepit. Dum alibi per totem regnum ingruente persecutione cessant functiones ecclesiasticae in hac insula quasi in alio orbe posita, liberum fit et publicum exercitium quad divinae providentiae hunc locum speciali favore protegenti gratum referunt et meritis S. Patricii. Cum ibi essem haereticus Anglus fama loci et curiositate movente eo accessit qui exemplo poenitentium compunctus haeresim abjuravit. Praeter caeteros ecclesiasticos eo accedentes strenuissimam navant operam Patres Franciscani. Unum in haec peregrinatione deprehendi usum, ne dicam abusum; nam nona die foveam ingressuri audiunt Missam, quae semper est de Requiem, seu defunctorum applicata pro iisdem ingredientibus, quasi jam mortuis mundo, et tradendis sepulturae; quad cum vellem abrogare saltem diebus Dominicis et festivis praesertim majoribus, quibus dicenda est missa conformis

officio obtenditur immemorabilis possessio et consuetudo in contrarium, ut fort traditio, ab ipso S. Patricio primitus instituta quod a viris doctis et timoratis constantissime assertum me perplexum reddidit et propterea humillime rogo edoceri ad Eminentiss Vestris quid desuper agendum censeant.’ ”

- [57.](#) “*Hib. Dom.*, p. 4, not. 6. The same learned writer justly remarks, that it was from the severity of its penitential exercises that this island derived its name:—‘Locus iste luendis peccatorum poenis destinatus *purgatorium* dicitur, non quidem posthumum, sed vitale seu viatorium in praesenti vita’.”
 - [58.](#) “*Bollandists*, March 17, p. 590.”
 - [59.](#) “From this, we might, perhaps, conclude, that the cave thus destroyed was not the present sanctuary visited by pilgrims, but was situated on one of the other islands of Lough Derg. In the Ordnance Map, the site of some such deserted cave is marked on the adjoining island, known as Saints' Island.”
 - [60.](#) “Messingham, *Florileg.*, p. 125.”
 - [61.](#) “*Boll.*, March 17, p. 590.”
 - [62.](#) “See notes to *Camb. Evers.*, vol. i. p. 146.”
 - [63.](#) “Amongst these we must reckon the narrative inserted in his *Hist. Cath. Hib.* by O'Sullivan Beare, pp. 18-30. The Work on St. Patrick's Purgatory, published by Mr. Wright (London, 1844), is a mere display of blind bigotry, by which he seeks to identify the teaching of the Catholic Church with the romances about this Purgatory of our saint.”
 - [64.](#) Vide P. J. B. De Herdt, *Sacrae Liturgiae Praxis*, tom. 3, part 6, no. 32. A very useful work, printed in Louvain in 1855.
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